

Chapter 20

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§ 20-26

ARTICLE I. IN GENERAL

Secs. 20-1—20-26. Reserved.

ARTICLE II. SANITARY SEWER SYSTEM***DIVISION 1. GENERAL PROVISIONS****Sec. 20-27. Purpose and policy.**

This article sets forth uniform requirements for users of the publicly owned treatment works (POTW) of the city and enables the city to comply with all applicable state and federal laws, including the Clean Water Act (33 United States Code § 1251 et seq.) and the General Pretreatment Regulations (40 Code of Federal Regulations Part 403). Recognizing that significant opportunities exist to reduce or prevent pollution at its source through cost effective practices, and that such practices can offer savings through reduced purchases of materials and resources, a decreased need for pollution control technologies, and lower liability costs, as well as assisting to protect the environment, the city establishes the following objectives of this article:

- (1) To promote, consistent with the policy of the federal government:
 - a. The prevention or reduction of pollutants at the source whenever feasible;
 - b. Recycling in an environmentally-safe manner when pollution cannot be prevented;
 - c. Treatment in an environmentally-safe manner of pollution that cannot be prevented or recycled; and
 - d. Disposal or other release into the environment in an environmentally-safe manner only as a last resort.
- (2) To encourage the development of these efforts, the city may:
 - a. Set city-wide pollution prevention goals;

***Editor's note**—Ord. No. 402, §§ 1—15, adopted Jan. 12, 2000, in effect repealed Ch. 20, Art. II, in its entirety and enacted a new Art. II as set out herein. The former Art. II pertained to similar subject matter. See the Code Comparative Table.

- b. Organize an assessment program task force;
 - c. Review data and inspect sites;
 - d. Develop pollution prevention options;
 - e. Conduct a feasibility analysis of selected options;
and
 - f. Promote implementation of pollution prevention techniques.
- (3) To prevent the introduction of pollutants into the POTW that will interfere with its operation;
 - (4) To prevent the introduction of pollutants into the POTW that will pass through the POTW, inadequately treated, into receiving waters, or otherwise be incompatible with the POTW;
 - (5) To protect both POTW personnel who may be affected by wastewater and sludge in the course of their employment and the general public;
 - (6) To promote beneficial reuse of sludge/biosolids as defined in the State of New Hampshire Env-Wq 802.07 rules;
 - (7) To provide for fees for the equitable distribution of the costs of operation, maintenance, and improvement of the POTW; and
 - (8) To enable the city to comply with its national pollutant discharge elimination system permit conditions, sludge use and disposal requirements, and any other federal or state law to which the POTW is subject.

This article shall apply to all users of the POTW. The article authorizes the issuance of wastewater discharge permits; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures; requires user reporting; and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

(Ord. No. 402, § 1, 1-12-00; Ord. No. 502, § 1, 10-8-08; Ord. No. 599, § 1, 10-26-2022)

Sec. 20-28. Administration.

Except as otherwise provided herein, the director of public works shall administer, implement, and enforce the provisions of

this article. Any powers granted to or duties imposed upon the public works director may be delegated by the public works director to other designated persons.
(Ord. No. 402, § 1, 1-12-00)

Sec. 20-29. Abbreviations.

The following abbreviations, when used in this article, shall have the following designated meanings:

BOD - Biochemical oxygen demand.

BMP - Best management practice.

BMR - Baseline monitoring report.

CFR - Code of Federal Regulations.

CIU - Categorical industrial user.

COD - Chemical oxygen demand.

EPA - United States Environmental Protection Agency.

gpd - Gallons per day.

IDP - Industrial discharge permit.

IU - Industrial users.

mg/l - Milligrams per liter.

DES - New Hampshire Department of Environmental Services.

NPDES - National pollutant discharge elimination system.

NSCIU - Non-significant categorical industrial user.

POTW - Publicly owned treatment works.

RCRA - Resource conservation and recovery act.

RSA - New Hampshire Revised Statute Annotated.

SIC - Standard industrial classification.

SIU - Significant industrial user.

SNC - Significant noncompliance.

TDS - Total dissolved solids.

TSS - Total suspended solids.

USC - United States Code.

(Ord. No. 402, § 1, 1-12-00; Ord. No. 502, § 1, 10-8-08)

Sec. 20-30. Definitions.

Unless a provision explicitly states otherwise, the following terms and phrases, as used in this article, shall have the meanings hereinafter designated.

Act or the act means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 USC § 1251 et seq.

Approval authority means the regional administrator of the EPA or his duly appointed agent.

Authorized representative of the user means:

- (1) If the user is a corporation:
 - a. The president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or
 - b. The manager of one (1) or more manufacturing, production or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for individual wastewater discharge permit or general permit requirements; and where author-

ity to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

- (2) If the user is a partnership or sole proprietorship: a general partner or proprietor, respectively.
- (3) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility.
- (4) The individuals described in paragraphs (a) through (c), above, may designate another authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the city.

Best management practices or BMPs means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in section 20-45(a) and (b) of this chapter [40 CFR 403.5(a)(1) and (b)]. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage. BMPs also include alternative means (i.e., management plans) of complying with, or in place of certain established categorical pretreatment standards and effluent limits.

Biochemical oxygen demand or BOD means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five (5) days at 20° centigrade, usually expressed as a concentration (e.g., mg/l).

Building drain means that part of the lowest horizontal piping of a drainage system that receives the discharge from soil, waste, and other drainage pipes inside the walls of the building and conveys it to the building sewer, beginning five (5) feet outside the inner face of the building wall.

Building sewer means the extension from the building drain to the public sewer or other place of disposal, also called house connection.

Bypass means the intentional diversion of waste streams from any portion of a wastewater treatment facility.

Capacity replacement fees means the fees assessed to a new connector to the water and/or wastewater systems or to an existing connector who proposes a use change that results in an increase in water use or an increase in the volume of wastewater discharged or both.

Capacity replacement fee surcharge means the fee assessed to a proposed or existing connector to the wastewater system who is authorized by an industrial discharge permit (IDP) to discharge high organic strength wastewater (BOD > 330 mg/l and/or TSS > 370 mg/l).

Categorical industrial user means an industrial user subject to a categorical pretreatment standard or categorical standard;

Categorical pretreatment standard or *categorical standard* means any regulation containing pollutant discharge limitations promulgated by EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. § 1317) that apply to a specific category of users and that appear in 40 CFR chapter I, subchapter N, parts 405—471.

Chemical oxygen demand or *COD* means a measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water;

City means the City of Claremont, New Hampshire.

Combined sewer means a sewer intended to receive both wastewater and storm or surface water.

Commercial use means premises used for financial gain, such as business or industrial use, but excluding residential uses and related accessory uses.

Commissioner means the Commissioner of the New Hampshire Department of Environmental Services, or the commissioner's duly appointed agent.

Compatible pollutant means biochemical oxygen demand, suspended solids, pH, and fecal coliform bacteria.

Connection fees means the fees charged a connector to reimburse the city for its costs of constructing that section of the building drain located within the public right-of-way and/or that section of the water service located within the public right-of-way.

Connector means a person proposing to connect or already connected to the water or wastewater system.

Control authority means the term control authority as used in this article, refers to the City of Claremont Publicly Owned Treatment Works.

Daily maximum means the arithmetic average of all effluent samples for a pollutant collected during a calendar day;

Daily maximum limit means the maximum allowable discharge limit of a pollutant during a calendar day. Where daily maximum limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

Director of public works means the person designated by the city to be responsible for the overall operation of the POTW, and who is charged with certain duties and responsibilities by this article, or duly authorized representatives.

Domestic wastewater or sewage means normal water-carried household and toilet wastes or waste from sanitary conveniences of residences, commercial buildings, and industrial plants, excluding ground, surface, or storm water. (See also: industrial wastes.)

Easement means an acquired legal right for the specific use of land owned by others.

Environmental Protection Agency or EPA means the United States Environmental Protection Agency or, where appropriate, the EPA Regional Water Management Division Director, or other duly authorized official of said agency.

Existing source means any source of discharge that is not a new source.

Floatable oil means oil, fat, or grease in a physical state such that it will separate by gravity from wastewater by treatment in an approved pretreatment facility. A wastewater shall be considered free of floatable oil if it is properly pretreated and the wastewater does not interfere with the collection system.

Force main means a line without access from individual properties, providing a connection from a pump station to a pump station, trunk, or sanitary sewer main.

Garbage means the animal and vegetable waste resulting from the handling, preparation, cooking, and serving of foods.

Grab sample means a sample that is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed fifteen (15) minutes.

Grease means the material removed from a grease interceptor (trap) serving a restaurant or other facility requiring such grease interceptors. Also means volatile and non-volatile residual fats, fatty acids, soaps, waxes and other similar materials.

Hauler means those persons, firms, or corporations, who pump, haul, transport, or dispose of septage and who are licensed by the New Hampshire Department of Environmental Services pursuant to RSA 485-A:4, XVI-a and rules adopted to implement said section.

High strength wastewater means wastewater having a BOD greater than 330 mg/l or a TSS greater than 370 mg/l.

Human excrement and other putrescible material means the liquid or solid matter discharged from the intestinal canal of a human, or other liquid or solid waste materials that are likely to undergo bacterial decomposition; provided, however, that these terms shall not include "refuse" as defined in RSA 145-M.

Incompatible pollutant means any pollutant that is not a compatible pollutant.

Industrial discharge permit or *IDP* means the written permit between the city and an industrial user that outlines the conditions under which discharge to the POTW will be accepted.

Industrial user means a person who discharges industrial wastes to the POTW of the city.

Industrial wastes or *non-domestic wastewater* means the wastewater and waterborne wastes from any liquid, gaseous, or solid waste substance resulting from any process of industry, manufacturing trade or business or from development of any natural resources as distinct from domestic wastewater, sewage or unpolluted water.

Indirect discharge or *discharge* means the introduction of pollutants into the POTW from any non-domestic source regulated under section 307(b), (c), or (d) of the Act.

Inspection fee means the fees charged a connector to reimburse the city for the costs of inspecting the construction of that section of the building sewer or that section of the water service or both located within the public right-of-way when accomplished by private contractor (when authorized by the city).

Instantaneous discharge limit means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composite sample collected, independent of the industrial flow rate and the duration of the sampling event.

Interference means a discharge, which alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal; and therefore is a cause of a violation of the city's NPDES permit or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued thereunder, or any more stringent state or local regulations: section 405 of the Act; the Solid Waste Disposal Act, including title II commonly referred to as RCRA; any state regulations contained in any state sludge management plan prepared pursuant to subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the

Toxic Substances Control Act; the Marine Protection Research and Sanctuaries Act; 40 CFR part 503 standards for sewage sludge use and disposal and RSA 485-A:4, XVI-a.

Local limit means specific discharge limits developed and enforced by the city upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 CRF 403.5(a)(1) and (b).

May means permissive (see "shall").

Medical/infectious waste means any solid waste that is generated in the diagnosis, treatment, or immunization of human beings or animals, in research pertaining thereto, or in the production or testing of biologicals.

Monthly average means the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

Monthly average limit means the highest allowable average of "daily discharges" over a calendar month, calculated as the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

National pollutant discharge elimination system permit or *NPDES permit* means a permit issued pursuant to section 402 of the Act (33 U.S.C. 1342).

Natural outlet means any outlet, including storm sewers and combined sewer overflows, into a watercourse, pond, ditch, lake, or other body or surface water or groundwater.

Nonprescription or proprietary medicine means non-narcotic medicines or drugs which may be sold without a prescription and which are prepackaged for use by the consumer and labeled in accordance with requirements of the laws of this state and the federal government, provided that this definition shall including the following:

- (1) A drug, the label of which bears substantially either the statement "Caution - federal law prohibits dispensing without prescription" or "Warning - may be habit forming."

Normal domestic wastewater means wastewater generated by residential users containing not more than 330 mg/l BOD and not more than 370 mg/l TSS.

New source means:

- (1) Any building, structure, facility, or installation from which there is or may be a discharge of pollutants, the construction of which commenced subsequent to the publication of proposed pretreatment standards under section 307(c) of the Act that will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:
 - a. The building, structure, facility, or installation is constructed at a site at which no other source is located;
 - b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or
 - c. The production or wastewater-generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, will be considered.
- (2) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:
 - a. Begun, or caused to begin, as part of a continuous on-site construction program:
 1. Any placement, assembly, or installation of facilities or equipment; or
 2. Significant site preparation work including clearing, excavation, or removal of existing build-

ings, structures, or facilities that is necessary for the placement, assembly, or installation of new source facilities or equipment; or

- b. Entered into a binding contractual obligation for the purchase of facilities or equipment that are intended to be used in its operation within a reasonable time. Options to purchase or contracts that can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.
- (3) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of section (1)b. or (1)c. above but otherwise alters, replaces, or adds to existing process or production equipment.

Noncontact cooling water means water used for cooling that does not directly contact any raw material, intermediate product, waste product, or finished product.

Pass through means a discharge that exits the POTW into waters of the United States in quantities or concentrations that, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the city's NPDES permit, including an increase in the magnitude or duration of a violation.

Person means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

pH means a logarithmic measure devised to express the hydrogen ion concentration of a solution, expressed in standard units. Solutions with pH values greater than seven (7) are basic (or alkaline); solutions with pH values less than seven (7) are acidic.

Pharmaceutical waste means a prescription drug or nonprescription or proprietary medicine that is no longer suitable for its intended purpose or is otherwise being discarded.

Pollutant means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

Pollution prevention means the use of materials, processes, or practices that reduce or eliminate the creation of pollutants or wastes at the source, or minimize their release to the environment prior to recycling, treatment or disposal. It includes practices that reduce the use of hazardous materials, energy, water or other resources. It also includes practices that protect natural resources and human health through conservation, more efficient use, or effective release minimization.

Prescription drug, legend drug or potent drug means:

- (1) A drug which under federal law is required, prior to being dispensed or delivered, to be labeled with any of the following statements:
 - a. "Caution federal law prohibits dispensing without prescription;" or
 - b. "Caution federal law restricts this drug to use by or on the order of the licensed veterinarian;" or
 - c. "RX only;" or
- (2) A drug which is required by any applicable federal or state law or regulation to be dispensed on prescription only or is restricted to use by practitioners.

Pretreatment means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to, or in lieu of, introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological pro-

cesses; by process changes; or by other means, except by diluting the concentration of the pollutants unless allowed by an applicable pretreatment standard.

Pretreatment requirements means any substantive or procedural requirement related to pretreatment imposed on a user, other than a pretreatment standard.

Pretreatment standards or *standards* means pretreatment standards, prohibited discharge standards, categorical pretreatment standards, and local limits.

Prohibited discharge standards or *prohibited discharges* means absolute prohibitions against the discharge of certain substances as identified in section 20-63 of this article.

Properly shredded garbage means wastes from the preparation, cooking, and dispensing of food that have been shredded to such a degree that all particles will be transported freely under the flow conditions normally prevailing in public sewers, with no particle greater than 1/2-inch in any dimension.

Public sewer means a pipe or conduit controlled by a governmental agency or public utility, that carries wastewater, storm water, groundwater, subsurface water, or unpolluted water from any building sewer.

Publicly owned treatment works or *POTW* means a "treatment works," as defined by section 212 of the Act (33 U.S.C. § 1292) that is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature. It also includes sewers, pipes, and other conveyances only if these structures convey wastewater to a POTW wastewater treatment facility. The term also means the municipality that has jurisdiction over discharges to and from such a treatment plant, and any sewer that conveys wastewater to the POTW from persons outside the city who are, by contract or agreement with the city, users of the city's POTW.

Radiological waste means radioactive waste as regulated by the State of New Hampshire RSA 125-F rules.

Recreational vehicle or *RV* means a mobile vehicle or trailer used for temporary living, e.g. a camper or wholly self-contained transport and living unit.

Sanitary sewer means a sewer that carries liquid and water-carried wastes from residences, commercial buildings, industrial facilities, and institutions, together with minor quantities of ground, storm, and surface waters that are not admitted intentionally.

Screening level means that concentration of a pollutant that under baseline conditions would cause a threat to personnel exposed to the pollutant, or would adversely impact structures of the POTW. To be administered as local limits applicable to a particular discharge, the screening levels must be adjusted to account for conditions at the point of discharge that differ from baseline conditions.

Semi-public use means premises of private, nonprofit organizations such as schools, hospitals, and religious institutions.

Septage or *septic tank waste* means any liquid, solid, or sludge pumped from chemical toilets, vaults, septic tanks, or cesspools or other holding tanks, that have received only domestic wastewater.

Septage tank truck means any watertight vehicle that is used for the collection and hauling of septage as described above and that complies with the rules of the New Hampshire Department of Environmental Services.

Sewage means human excrement and gray water (household showers, dishwashing operations, sink drains and similar uses).

Sewer means a pipe or conduit that carries wastewater, storm water, groundwater, subsurface water, or unpolluted water from any source.

Shall means mandatory (see "may").

Significant industrial user means:

(1) Except as provided in paragraphs (2) and (3) of this section, the term significant industrial user means:

- (i) All industrial users subject to categorical pretreatment standards under 40 CFR 403.6 and 40 CFR chapter I, subchapter N; and
- (ii) Any other industrial user that: discharges an average of twenty-five thousand (25,000) gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); contributes a process wastestream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or is designated as such by the control authority on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

(2) The control authority may determine that an industrial user subject to categorical pretreatment standards under §403.6 and 40 CFR chapter I, subchapter N is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than 100 gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

- (i) The industrial user, prior to the control authority's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;
- (ii) The industrial user annually submits the certification statement required in §403.12(q) together with any additional information necessary to support the certification statement; and
- (iii) The industrial user never discharges any untreated concentrated wastewater.

(3) Upon a finding that an industrial user meeting the criteria in paragraph (1)(ii) of this section has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standards or requirement, the control authority may at any time, on its own initiative or in response to a petition received from an industrial user or POTW, and in accordance with 40 CFR 403.8(f)(6), determine that such industrial user is not a significant industrial user.

Significant noncompliance or *SNC* means an industrial user is in significant noncompliance if its violation meets one (1) or more of the following criteria:

- (1) *Chronic violations*. A pattern of violating the same pretreatment standard daily maximum or average limit (any magnitude of exceedance) sixty-six (66) percent or more of the time in a six-month period, including instantaneous limits;
- (2) *Technical review criteria (TRC violations)*. Thirty-three (33) percent or more of the measurements exceed the same pretreatment standard daily maximum limit or average limit by more than the TRC factor in a six-month period, including instantaneous limits. The TRC factor is

1.4 for biochemical oxygen demand (BOD), total suspended solids (TSS), oil and grease and 1.2 for all other pollutants except pH;

- (3) For pH monitoring, excursions shall be considered SNC when:
- a. The total time during which the pH values are outside the required range of pH values exceeds seven (7) hours and twenty-six (26) minutes in any calendar month;
 - b. An individual excursion from the range of pH values exceeds sixty (60) minutes;
 - c. An excursion occurs that the city believes has caused, alone or in combination with other discharges, interference or pass-through; or has endangered the health of the sewage treatment personnel or the general public; or
 - d. Any pH less than or equal to 2.0 or greater than or equal to 12.5.
- (4) Any other discharge violation of a pretreatment standard or requirement including daily maximum, long-term average, instantaneous limit or narrative standard that the director of public works believes has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public;
- (5) Any discharge of pollutants that has caused imminent endangerment to the public or to the environment, or has resulted in the director of public works' exercise of its emergency authority to halt or prevent such a discharge;
- (6) Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in a wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;
- (7) Failure to provide within thirty (30) days after the due date, any required reports, including baseline monitoring reports, industrial discharge permit applications, reports

on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

- (8) Failure to accurately report noncompliance; or
- (9) Any other violation(s) which may include a violation of best management practices that the director of public works determines will adversely affect the operation or implementation of the local pretreatment program.

Slug load or slug discharge means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards in section 20-45 of this chapter. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through or in any other way violate the POTW's regulations, local limits or permit conditions.

Source reduction means any practice that:

- (1) Reduces the amount of any hazardous substance, pollutant, or contaminant entering any waste stream or otherwise released into the environment (including fugitive emissions) prior to recycling, treatment, or disposal; and
- (2) Reduces the hazards to public health and the environment associated with the release of such substances, pollutants, or contaminants.

The term includes equipment or technology modifications; process or procedure modifications; reformulation or redesign of products; substitution of raw materials; and improvements in housekeeping, maintenance, training, or inventory control. The term "source reduction" does not include any practice that alters the physical, chemical, or biological characteristics or the volume of a hazardous substance, pollutant, or contaminant through a process or activity that itself is not integral to and necessary for the production of a product or the providing of a service.

Standard industrial classification (SIC) code means a classification pursuant to the Standard Industrial Classification Manual issued by the United States Office of Management and Budget.

State means the State of New Hampshire.

Storm drain or *storm sewer* means a drain or sewer for conveying storm water, groundwater, subsurface water, or unpolluted water from any source.

Storm water means any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snow melt.

Suspended solids or *TSS* means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and that is removable by laboratory filtering.

Treatment plant, treatment works, or treatment facility means any device or system used in the storage, treatment, equalization, recycling or reclamation of wastewater and/or wastewater sludges as defined herein.

Unpolluted water means water of quality equal to or better than the state water quality standards (part Env-Wq 1700) or water that would not cause a violation of receiving water quality standards and would not be benefitted by discharge to the POTW.

User or *industrial user* means a source of pollutants introduced into the POTW from any nondomestic source regulated under section 307(b), (c), or (d) of the Act.

Wastewater means liquid and water-carried industrial wastes and/or sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.

Wastewater treatment plant or *treatment plant* means that portion of the POTW which is designed to provide treatment of municipal sewage and industrial waste.

Watercourse means a natural or artificial channel for the passage of water either continuously or intermittently.
(Ord. No. 402, § 1, 1-12-00; Ord. No. 502, § 1, 10-8-08; Ord. No. 599, § 1A, B, 10-26-2022)

Secs. 20-31—20-44. Reserved.

DIVISION 2. GENERAL SEWER USE REQUIREMENTS

Sec. 20-45. Use of public sewers.

(a) *Unlawful deposit of waste.* It shall be unlawful for any person to place, deposit, or permit to be deposited in any unsanitary manner on public or private property within the city or in any area under the jurisdiction of the city, any human or animal excrement, garbage, or objectionable waste.

(b) *Unlawful discharge of wastewater.* It shall be unlawful to discharge to any natural outlet within the city, or in any area under the jurisdiction of the city, any wastewater or other polluted waters, except where suitable treatment has been provided in accordance with subsequent provisions of this article and with state and federal laws and regulations.

(c) *Sewers for intended uses only.* No person shall discharge into any public sewer of the city, or into any fixture that thereafter discharges into any public sewer, any waste or substance other than for which the particular sewer is intended, designed or provided.

(d) *Applicable permits required.* No person shall discharge into any public sewer of the city, or into any fixture that thereafter discharges into any public sewer, any waste or substance until all applicable federal, state and local permits have been obtained.

(e) *Use of sanitary sewers.* Except as specifically provided with reference to some particular sewer, sanitary sewers shall be used only for the conveyance and disposal of domestic wastewater, and for industrial wastes that are not objectionable as hereinafter provided. No sanitary sewer shall be used to receive and convey or dispose of any storm or surface water, subsoil drainage, or unpolluted water.

(f) *Use of storm sewers.* Storm water and all other unpolluted drainage shall be discharged to such sewers as are specifically designed as storm sewers, or a natural outlet approved by the director of public works. An NPDES permit is required prior to

discharging industrial cooling water, process waters, or storm water runoff generated in areas of industrial activity (as defined in 40 CFR part 122) to a storm sewer or natural outlet.

(g) *Use designation.* If the intended or designated use of any particular sewer or drain and allowable discharge thereto is unclear, the director of public works will consider the pertinent facts and make a determination. Said determination will be final and binding.

(h) *Unlawful construction.* Except as hereinafter provided, it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of wastewater in any area where a public sewer is available, as described in paragraph (i) below.

(i) *Requirement for connection.* The owner(s) of all houses, buildings, or properties used for human occupancy, employment, recreation, or other purposes, situated within the city and abutting on any street, alley, or right-of-way in which there is now located or may in the future be located a public sanitary sewer of the city, is hereby required at the owners' expense to install suitable toilet facilities therein, and to connect such facilities directly with the proper public sewer in accordance with the provisions of this article, within ninety (90) days subsequent to the date of official notice to do so, provided that said gravity public sewer is within two hundred (200) feet of the building. This requirement for connection may be waived when permitted by the director of public works if the household is already connected to a properly functioning, state-approved septic system.

(j) *Private wastewater disposal facilities.* Where a public sanitary sewer is not available under the provisions of paragraph (i) above, the building sewer shall be connected to a private wastewater disposal system complying with the provisions of RSA 485-A:29-44 and rules promulgated thereto. The owner(s) shall operate and maintain the private wastewater disposal facilities in a sanitary manner at all times, at no expense to the city. At no time shall any quantity of industrial waste be discharged to a private, domestic wastewater disposal facility.

(k) *Discontinuance of use.* At such time as a public sewer becomes available to a property serviced by a private wastewater disposal system, the owner shall connect to the public sewer, as provided in paragraph (i) above. Any septic tanks, cesspools, and

similar private wastewater disposal facilities shall be cleaned of sludge and filled with clean mineral soils, and their use shall be discontinued.

(l) *Additional requirements.* No statement contained in the preceding paragraphs of this section shall be construed to interfere with any additional lawful requirements that may be imposed by the director of public works.

(m) No person(s) shall maliciously, willfully, or negligently break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance or equipment that is part of the POTW. (Ord. No. 402, § 2, 1-12-00)

Sec. 20-46. Building sewers and connections.

(a) No person(s) shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance thereof without first obtaining written permission from the director of public works.

(b) There shall be two (2) classes of building sewer connection permits:

- (1) For residential and commercial service producing only domestic wastewater; and
- (2) For service to establishments producing industrial wastes. For residential and commercial services, the owner(s) or his agent shall make application on a special form furnished by the city at least thirty (30) days prior to said service connection. For an establishment discharging industrial wastes, the application shall be made at least sixty (60) days prior to said service connection. The permit application shall be supplemented by any plans, specifications, or other information (including pollution prevention studies) considered pertinent in the judgment of the director of public works.

(c) At the discretion of the director of public works, the city may construct that section of the service connection located within the public right-of-way extending from the main sewers to the connector's property line (edge of the right-of-way). In such case the owner (connector) shall be assessed a connection fee to

reimburse the city for its costs in constructing the service connection. Construction of the remaining section of the building sewer including connection of the structure served shall be the responsibility of the owner. Such owner shall indemnify and save harmless the city, its officers and agents from all loss or damage that may result, directly or indirectly, due to construction of the building sewer on his premises or its connection to the city installed service connection.

(d) Should the director of public works determine that the owner (connector) should construct the entire length of service connection (building sewer), then the owner shall be assessed an inspection fee to reimburse the city for its costs of inspecting said service connection in accordance with paragraph (m) of this section. All costs and expenses incidental to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the city from any loss or damage that may directly or indirectly be occasioned by the installation of the building sewer.

(e) A separate and independent building sewer shall be provided for every building, except where one (1) building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear building through an adjoining alley, court, yard, or driveway. In such cases, the front building sewer may be extended to the rear building and the whole considered as one (1) building sewer, but the city does not and will not assume any obligation or responsibility for damage caused by or resulting from any such single connection.

(f) Existing building sewers may be used in connection with new buildings only when they are found, on examination and test by the director of public works to meet all requirements of this article.

(g) The size, slope, alignment, materials of construction of a building sewer, and the methods to be used in excavating, placing of the pipe, jointing, testing, and backfilling the trench, shall all conform to the requirements of the building and plumbing code or other applicable rules and regulations of the city and DES rules Env-Wq 700. In the absence of code

provisions or in amplification thereof, the materials and procedures set forth in appropriate specifications of the American Society for Testing and Materials (ASTM) and Water Environment Federation (WEF) Manual of Practice No. FD-5 shall apply.

(h) During construction of a new sanitary sewer, the city may construct the service connections for existing buildings to the curb or the property line or the edge of a right-of-way. Construction of the building sewer, including connection to the structures served, shall be the responsibility of the owner of the improved property to be connected; and such owner shall indemnify and save harmless the city, its officers, and agents from all loss or damage that may result, directly or indirectly, due to the construction of a building sewer on his premises or its connection to the service connection. The owner shall thereafter be obligated to pay all costs and expenses of operation, repair and maintenance, and of reconstruction, if needed of the building sewer and service connection.

(i) Whenever possible, the building sewer shall be brought to the building at an elevation below the basement floor. In all buildings in which any building drain is too low to permit gravity flow to the public sewer, sewage conveyed by such building drain shall be lifted by an approved means and discharged to the building sewer at the owner's expense.

(j) No person(s) shall make connection of roof down spouts, interior or exterior foundation drains, area-way drains, or other sources of surface run-off or groundwater to a building sewer or building drain that in turn is connected directly or indirectly to a public sanitary sewer.

(k) No person shall obstruct the free flow of air through any drain or soil pipe.

(l) The connection of the building sewer into the public sewer shall conform to the requirements of the building and plumbing code or other applicable rules and regulations of the city, or the procedures set forth in appropriate specifications of the ASTM and the WEF Manual of Practice No. FD-5. All such connections shall be made gas-tight and watertight and verified by proper testing. All connections shall be protected from backflow with

an approved backflow device. Any deviation from the prescribed procedures and materials must be approved by the director of public works before installation.

(m) The applicant for the building sewer permit shall notify the director of public works when the building sewer is ready for inspection and connection to the public sewer. Such notice shall be provided not less than forty-eight (48) hours in advance of the time any connection is to be made to any public sewer. The connection and testing shall be made under the supervision of the director of public works or his representative. This requirement shall also apply to repairs or alterations to building connections, drains or pipes thereto.

(n) Suitable provisions shall be made at the point of connection for testing, which responsibility shall rest with the holder of the sewer connection permit.

(o) No building sewer shall be covered until it has been inspected and approved by the director of public works. If any part of building sewer is covered before being inspected and approved, it shall be uncovered for inspection at the cost and expense of the owner of the improved property to be connected to the public sewer.

(p) The director of public works shall maintain a record of all connections made to public sewers and drains under this article and all repairs and alterations made to building connections or drains connected to or discharging into public sewers and drains of the city or intended to so discharge. All persons concerned shall assist the director of public works in securing the data needed for such records.

(q) All excavations for building sewer installation shall be performed in accordance with recognized safety standards and shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the city at the expense of the owner.

(r) Proposed new discharges from residential or commercial sources involving loadings exceeding fifty (50) population equivalents (five thousand (5,000) gpd), any new industrial discharge, or any alteration in either flow or waste characteristics of existing industrial wastes that are being discharged into the POTW must be approved by DES. Such approvals shall be obtained in accordance with section 20-115 of this article. (Ord. No. 402, § 2, 1-12-00; Ord. No. 599, § 2, 10-26-2022)

Sec. 20-47. Prohibited discharge standards.

Pollutants, substances, or wastewater prohibited by this section shall not be processed or stored in such a manner that they could be accidentally discharged to the POTW.

- (1) *General prohibitions.* No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater that causes pass-through or interference, or has an adverse effect on the receiving stream. These general prohibitions apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any other federal, State, or local pretreatment standards or requirements.
- (2) *Specific prohibitions.* No user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:
 - a. Any gasoline, benzene, naphtha, fuel oil or other flammable or explosive liquid, gas, solid, or any substance that may generate or form any flammable, combustible or explosive substance, fluid, gas, vapor or liquid when combined with air, water or other substances present in sewers, including, but not limited to, wastestreams with a closed-cup flashpoint of less than 140°F (60°C) using the test methods specified in 40 CFR 261.21;
 - b. Wastewater having a pH less than 5.0 or greater than 11.0, as measured at the point of connection to the sanitary sewer or other available monitoring location, or otherwise causing corrosive structural damage or hazard to the POTW equipment, or

personnel, or with alkalinity in such quantities that the pH of the influent to the POTW is caused to exceed 8.0;

- c. Solid or viscous substances including water or wastes containing fats, wax, grease, or oils, whether emulsified or not, or containing substances that may solidify or become viscous at temperatures between thirty-two (32) and one hundred fifty (150) degrees (0—65 degrees C), in amounts that will cause obstruction of the flow in the POTW resulting in interference;
- d. Pollutants, including oxygen-demanding pollutants (BOD, COD, etc.), or chlorine demand requirements released in a discharge at a flow rate and/or pollutant concentration that, either singly or by interaction with other pollutants, will cause interference with the POTW, constitute a hazard to humans or animals, create a public nuisance, exceed any national categorical pretreatment standard, cause process upset, loss of treatment ability or cause pass through.
- e. Wastewater having a temperature greater than 150°F (65°C), or which will inhibit biological activity in the treatment plant resulting in interference, but in no case wastewater that causes the temperature at the introduction into the POTW treatment plant to exceed 104°F (40°C);
- f. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, in amounts that will cause interference or pass-through;
- g. Pollutants that result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;
- h. Trucked or hauled pollutants, except at discharge points designated by the director of public works in accordance with section 20-84 of this article;

- i. Any medical/infectious waste, pharmaceutical waste, or radiological waste except as specifically authorized in a discharge permit.
- j. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent or sludge to fail a toxicity test;
- k. Any hazardous waste listed or designated by the State of New Hampshire Env-Hw 400 rules.
- l. Wastewater that imparts color that may not be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently may impart color to the treatment facility's effluent, thereby violating the city's NPDES permit;
- m. Noxious or malodorous liquids, gases, solids, or other wastewater that, either singly or by interaction with other wastes, are sufficient to create a public nuisance or a hazard to life, or to prevent entry into the sewers for maintenance or repair;
- n. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;
- o. Sludges, screenings, or other residues from the pretreatment of industrial wastes;
- p. Detergents, surface-active agents, or other substances that may cause excessive foaming in the POTW;
- q. Wastewater causing a reading on an explosion hazard meter at the point of discharge into the POTW, or at any point in the POTW, of more than ten (10) percent of the lower explosive limit of the meter;
- r. Garbage that has not been properly shredded (garbage grinders may be connected to sanitary sewers from homes, hotels, institutions, restaurants, hospitals, catering establishments, or similar places

where garbage originates from the preparation of food in kitchens for the purpose of consumption on the premises or when served by caterers);

- s. Any quantities of flow, concentrations, or both that constitute a "slug" as defined in section 20-30 of this article;
 - t. Waters or wastes that, by interaction with other water or wastes in the POTW, release dangerous or noxious gases, form suspended solids that affect the operation of the collection system, or create a condition deleterious to structures and treatment processes; or
 - u. Any materials that exert or cause unusual concentrations of inert suspended solids (such as, but not limited to, Fullers earth, lime, slurries, and lime residues) or of dissolved solids (such as, but not limited to, sodium chloride and sodium sulfate).
- (3) Additional prohibitions. No user shall introduce or cause to be introduced into the POTW the following substances, pollutants or wastewater, unless specifically authorized by the director of public works in a wastewater discharge permit:
- a. Storm water, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, non-contact cooling water, or otherwise unpolluted wastewater
- (Ord. No. 402, § 2, 1-12-00; Ord. No. 502, § 2, 10-8-08; Ord. No. 599, § 2A, B, C, D, 10-26-2022)

Sec. 20-48. Federal categorical pretreatment standards.

The categorical pretreatment standards are found at 40 CFR chapter I, subchapter N, parts 405-471 and are hereby incorporated into the article.

- (1) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a

pollutant in wastewater, the director of public works may impose equivalent concentration or mass limitations in accordance with 40 CFR 403.6(c).

- (2) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the director of public works shall impose an alternate limit using the combined wastestream formula in 40 CFR 403.6(e).
- (3) A user may obtain a variance from a categorical pretreatment standard if the user can prove, pursuant to the procedural and substantive provisions in 40 CFR 403.13, that factors relating to its discharge are fundamentally different from the factors considered by EPA when developing the categorical pretreatment standard.
- (4) A user may obtain a net gross adjustment to a categorical standard in accordance with 40 CFR 403.15.

The city shall provide timely notification to appropriate industrial users of applicable categorical pretreatment standards. Upon promulgation of the federal categorical pretreatment standards for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this article for sources in that subcategory, shall, on the compliance date of the categorical pretreatment standards, immediately supersede the limitations imposed under this article.

Compliance with categorical pretreatment standards shall be achieved within three (3) years of the date such standards are effective, unless a shorter compliance schedule is specified in the standards.

An industrial user subject to categorical pretreatment standards shall not discharge wastewater directly or indirectly to the city's POTW subsequent to the compliance date of such standards unless an amendment to its industrial discharge permit has been issued by the city.

(Ord. No. 402, § 2, 1-12-00)

Sec. 20-49. Local discharge restrictions.

All persons discharging industrial process wastes into public or private sewers connected to the city's POTW shall comply with applicable federal requirements and state standards for pretreatment of wastes as they may be amended from time to time in addition to the requirements of this article.

Local numerical discharge limitations established by the city as set forth herein (referred to as "local limits"), and all state pretreatment standards and categorical pretreatment standards shall apply, whichever is most stringent.

In developing the list of pollutants of concern for which local limits are established, the city has considered the allowable headworks loading, compliance with the NPDES permit limits, compliance with water quality limits, prevention of process inhibition, and protection of sludge quality at the wastewater treatment facility. The pollutants of concern have resulted in development of local limits. Pollutants with a potential to impact the wastewater treatment facility are targeted for mandatory screening levels. The city may consider reducing associated sewer use rates for those users implementing effective pollution prevention techniques with respect to pollutants on either the "local limits" or "pollution prevention action" lists.

If any waters or wastes are discharged or are proposed to be discharged to the POTW that exceed the standards or restrictions established in sections 20-47, 20-48, and 20-49 of this article, which in the judgment of the director of public works may have a deleterious effect upon the POTW, processes, equipment, or receiving waters, or that otherwise create a hazard to worker safety or health, or constitute a public nuisance, the director of public works may:

- (1) Reject or prevent any discharge to the POTW after notice has been served to the discharger and the discharger has had reasonable opportunity to respond;
- (2) Require pretreatment prior to discharge to the POTW (division 3);
- (3) Require control (e.g., equalization) over the quantities and rates of discharge; and/or
- (4) The director of public works may develop best management practices (BMPs), by ordinance or in individual wastewater discharge permits to implement local limits and the requirements of this division 2.

If the director of public works allows the pretreatment or equalization of waste flows, the design and installation of the systems and equipment shall be subject to the review and approval of the director of public works and the state (see division 3).

- (1) *Local limits.* The following numerical pollutant discharge limitations are established to protect against pass-

through and interference. No person shall discharge wastewater containing constituents at daily concentrations greater than indicated below:

<i>Pollutant</i>	<i>Concentration Limit (mg/l)</i>	<i>Pollutant</i>	<i>Concentration Limit (mg/l)</i>
Arsenic	0.1126	Mercury	0.0009
Cadmium	0.0259	Molybdenum	0.0558
Chromium (T)	2.1571	Nickel	1.2165
Copper	0.2382	Selenium	0.0983
Cyanide (T)	0.3736	Silver	0.0283
Lead	0.0509	Zinc	0.6341

For industrial discharge applications, the local limits presented above shall apply at the end of the process train prior to dilution with non-industrial wastewaters.

Daily concentrations are the concentration of a pollutant discharged, determined from the analysis of a flow-composited sample (or other sampling procedure approved by the director of public works) representative of the discharge over the duration of a 24-hour day or industrial operating schedule of less than twenty-four (24) hours.

All concentration limits for metals represent "total" metal unless indicated otherwise. The director of public works may impose mass limitations in addition to, or in accordance with section 20-52, in place of the concentration-based limitations above.

Local limits are developed based on the identification of industrial users known to be discharging each pollutant (industrial contributory flow procedure). Unless specifically identified in an industrial discharge permit, an industrial user shall not discharge the locally limited pollutants at concentrations twenty (20) percent greater than the background concentrations used for local limits development.

Pollution prevention activities that result in a decreased discharge of these pollutants to the POTW, such that the headworks loading of a pollutant is less than forty (40)

percent of the allowable loading, may result, at the discretion of the director of public works, in rescission of a local limit for that pollutant from this article.

- (2) *Screening levels.* The following pollutants shall not be discharged to the POTW exceeding concentrations listed below without approval of the director of public works:

Oil and Grease of Animal and Vegetable Origin	250 mg/l
Oil and Grease of Petroleum Origin	100 mg/l
Sulfides	1.0 mg/l
Sulfate	150 mg/l
Surfactants	100 mg/l

Screening levels are numerical values above which actions are initiated to evaluate, prevent or reduce adverse impacts due to flammability, chemical reactivity, organic/solids loadings, or worker health and safety.

If any of the screening levels are exceeded, repeat analysis must be performed to verify compliance or noncompliance with that screening level. If noncompliance is confirmed, then the industrial user may be required, at the discretion of the director of public works, to conduct an appropriate engineering evaluation to determine the potential impact of the discharge of this pollutant to the city's POTW or alternatively, to develop a pollution prevention plan specifically addressing the pollutant that exceeds the screening level. This study or plan must be conducted under the supervision and approval of the city. Should the evaluation indicate the impact to be unsatisfactory, the industrial user shall reduce the pollutant concentration to a satisfactory level. If the evaluation supports development of an alternate site-specific limitation, then the screening level shall be adjusted and administered as a limit for the specific discharge.

- (3) *Special agreements.* No statement contained in this section except for subsections 20-47(1), 20-47(2), and section 20-48 shall be construed as preventing any special agree-

ment or arrangement between the city and any industrial user whereby an industrial waste of unusual strength or character may be accepted by the city for treatment provided that said agreements do not contravene any requirements of existing federal or state laws, and/or regulations promulgated thereunder, are compatible with any user charge system in effect, and do not waive applicable federal categorical pretreatment standards. Special agreement requests shall require submittal of a pollution prevention plan that specifically addresses the discharge for which a special agreement is requested. For pollutants with numerical local limits, the city has allocated a percentage of its allowable industrial loadings for such special agreements. Requests for special agreements that exceed this allocation will not be approved.

(Ord. No. 402, § 2, 1-12-00; Ord. No. 502, § 2, 10-8-08)

Sec. 20-50. City's right of revision.

The discharge standards and requirements set forth in sections 20-47, 20-48, and 20-49 are established for the purpose of preventing discharges to the POTW that would harm the sewers, wastewater treatment process, or equipment; would have an adverse effect on the receiving stream; or would otherwise endanger lives, limb, public property, or constitute a nuisance.

To meet these objectives, the director of public works may, from time to time, review and set more stringent standards or requirements than those established in sections 20-47, 20-48, and 20-49 if, in the director of public works' opinion, such more stringent standards or requirements are necessary. At a minimum, this review will be performed at least once every five (5) years. In forming this opinion, the director of public works may give consideration to such factors as the quantity of waste in relation to flows and velocities in the sewers, materials of construction of

the sewers, the wastewater treatment process employed, capacity of the wastewater treatment facility, degree of treatability at the wastewater treatment facility, pollution prevention activities, and other pertinent factors. The limitations or restrictions on materials or characteristics of waste or wastewaters discharged to the sanitary sewer shall not be exceeded without the approval of the director of public works.

The director of public works shall allow affected industrial users reasonable time to comply with any changes to the local limits. The conditions and schedule for compliance shall accompany the written notification of amended local limits.
(Ord. No. 402, § 2, 1-12-00)

Sec. 20-51. Dilution.

No user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The director of public works may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.
(Ord. No. 402, § 2, 1-12-00)

Sec. 20-52. Mass-based limitations.

Users implementing process changes may request that compliance be determined based on mass limitations in lieu of concentration limitations. Such mass-based limitations will be calculated from the permitted concentration-based limitations and flows, and shall be equivalent to or less than the mass discharge in effect at the time of the request. The intent of a mass-based limit is to encourage and allow pollution prevention and/or water conservation measures that might cause a facility to increase pollutant concentrations in its discharge even though the total mass of the pollutant discharged does not increase, and may in fact decrease. Decisions on granting requests for mass-based compliance limitations will be based on user-specific information

and current operating conditions of the POTW, and will be at the discretion of the director of public works. Implementation of mass-based limitations may not contravene any requirements of federal or state laws and/or regulations implemented thereunder, and may not waive applicable categorical pretreatment standards.

(Ord. No. 402, § 2, 1-12-00)

Secs. 20-52—20-60. Reserved.

DIVISION 3. PRETREATMENT OF WASTEWATER

Sec. 20-61. Pretreatment facilities.

Users shall provide wastewater treatment as necessary to comply with this article and shall achieve compliance with all categorical pretreatment standards, local limits, prohibitions, and requirements set out in sections 20-47, 20-48, and 20-49 of this article within the time limitations specified by EPA, the state, or the director of public works, whichever is more stringent. All facilities required to achieve and maintain compliance shall be provided, operated, and maintained at the user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the director of public works for review, and shall be acceptable to the director of public works and the DES before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the city under the provisions of this article.

(Ord. No. 402, § 3, 1-12-00)

Sec. 20-62. Additional pretreatment measures.

(a) Whenever deemed necessary to protect the POTW and determine the user's compliance with the requirements of this article, the director of public works may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate

and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary.

(b) The director of public works may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An industrial discharge permit may be issued solely for flow equalization.

(c) Grease, oil, and sand interceptors shall be provided at the owner's expense when, required by local or state building code, in the opinion of the director of public works, these devices are necessary for the preliminary treatment of wastewater containing excessive amounts of grease and oil, or sand; except that such interceptors shall not be required for residential users. All interception units shall be of a type and capacity approved by the director of public works and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired regularly, as needed, by the user at their expense. The owner shall be responsible for the proper removal and disposal by appropriate means of the captured materials and shall maintain records of the dates and means of disposal, which shall be subject to periodic review by the director of public works. Any removal and hauling of the collected materials shall be performed by currently licensed waste disposal firms.

(d) Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter and alarm.

(e) Where pretreatment or flow equalizing facilities are provided or required for any waters or wastes, these devices shall be maintained continuously to ensure satisfactory and effective operation by the owner at his expense.

(f) Dental practices that remove or place mercury containing amalgam shall comply with federal 40 CFR Part 441 and state Env-Wq 306 regulations.

(Ord. No. 402, § 3, 1-12-00; Ord. No. 599, § 3A, B, 10-26-2022)

Sec. 20-63. Accidental discharge/slug control plans.

At least once every two (2) years, the director of public works shall evaluate whether each significant industrial user needs an accidental discharge/slug control plan. The director of public works may require any user to develop, submit for approval, and implement such a plan. Alternatively, the director of public works may develop such a plan for any user. An accidental discharge/slug control plan shall address, at a minimum, the following:

- (1) Description of discharge practices, including non-routine batch discharges;
- (2) Description of stored chemicals;
- (3) Procedures for immediately notifying the director of public works of any accidental or slug discharge, as required by section 20-116 of this article; and
- (4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(Ord. No. 402, § 3, 1-12-00)

Sec. 20-64. Pollution prevention plans.

In accordance with the provisions of sections 20-49 and 20-120.140 of this article, the director of public works may require any person discharging wastes into the POTW to develop and implement, at that person's own expense, a pollution prevention plan. The director of public works may require users to submit as part of the pollution prevention plan information that demonstrates adherence to the following elements:

- (1) *Management support.* For changes to be effective, the visible support of top management is required. Management's support should be explicitly stated and

include designation of a pollution prevention coordinator, goals, and time frames for reductions in volume and toxicity of wastestreams, and procedures for employee training and involvement.

- (2) *Process characterization.* A detailed process waste diagram shall be developed that identifies and characterizes the input of raw materials, the outflow of products, and the generation of wastes.
- (3) *Waste assessment.* Estimates shall be developed for the amount of wastes generated by each process. This may include establishing and maintaining waste accounting systems to track sources, the rates and dates of generation, and the presence of hazardous constituents.
- (4) *Analysis of waste management economics.* Waste management economic returns shall be determined based on the consideration of:
 - a. Reduced raw material purchases;
 - b. Avoidance of waste treatment, monitoring and disposal costs;
 - c. Reductions in operations and maintenance expenses;
 - d. Elimination of permitting fees and compliance costs; and
 - e. Reduced liabilities for employee/public exposure to hazardous chemicals and cleanup of waste disposal sites.
- (5) *Development of pollution prevention alternatives.* Current and past pollution prevention activities should be assessed, including estimates of the reduction in the amount and toxicity of waste achieved by the identified actions. Opportunities for pollution prevention must then be assessed for identified processes where raw materials become or generate wastes. Technical information on pollution prevention should be solicited and exchanged, both from inside the organization and out.
- (6) *Evaluation and implementation.* Technically and economically feasible pollution prevention opportunities shall be identified and an implementation timetable with interim and final milestones shall be developed. The recommendations that are implemented shall be periodically reviewed for effectiveness.

The review and approval of such pollution prevention plans by the city shall in no way relieve the user from the responsibilities of modifying facilities as necessary to produce a discharge acceptable to the city in accordance with the provisions of this article. (Ord. No. 402, § 3, 1-12-00)

Secs. 20-65—20-75. Reserved.

DIVISION 4. INDUSTRIAL DISCHARGE PERMIT APPLICATION

Sec. 20-76. Wastewater characterization.

When requested by the director of public works, a user must submit information on the nature and characteristics of its wastewater within sixty (60) days of the request. The director of public works is authorized to prepare a form for this purpose and may periodically require users to update this information. (Ord. No. 402, § 4, 1-12-00)

Sec. 20-77. Industrial discharge permit requirement.

(a) No significant industrial user shall discharge wastewater into the POTW without first obtaining an industrial discharge permit from the director of public works, except that a significant industrial user that has filed a timely and complete application pursuant to section 20-79 of this article may continue to discharge for the time period specified therein.

(b) The director of public works may require other users to obtain industrial discharge permits, or submit an application for an industrial discharge permit, as necessary to execute the purposes of this article.

(c) Any violation of the terms and conditions of an industrial discharge permit shall be deemed a violation of this article and shall subject the industrial discharge permittee to the enforcement actions set out in divisions 10 through 12 of this article. Obtaining an industrial discharge permit does not relieve a

permittee of its obligation to comply with all federal and state pretreatment standards or requirements or with any other requirements of federal, state, and local law.
(Ord. No. 402, § 4, 1-12-00)

Sec. 20-78. Reserved.

Editor's note—Ord. No. 599, § 4, adopted October 26, 2022, repealed § 20-78, which pertained to discharge permit request requirement and derived from Ord. No. 402, § 4, adopted January 12, 2000.

Sec. 20-79. Industrial discharge permitting—Existing connections.

Any user required to obtain an industrial discharge permit who was discharging wastewater into the POTW prior to the effective date of this article, and is not currently covered by a valid industrial discharge permit, and who wishes to continue such discharges in the future, shall, within sixty (60) days after said date, apply to the director of public works for an industrial discharge permit in accordance with section 20-82 of this article, and shall not cause or allow discharges to the POTW to continue after one hundred twenty (120) days of the effective date of this article except in accordance with an industrial discharge permit issued by the director of public works.
(Ord. No. 402, § 4, 1-12-00)

Sec. 20-80. Industrial discharge permitting—New connections.

Any user required to obtain an industrial discharge permit who proposes to begin or recommence discharging into the POTW shall obtain an industrial discharge permit prior to the beginning or recommencing of such discharge. An application for this industrial discharge permit, in accordance with section 20-82 of this article, shall be filed at least ninety (90) days prior to the date upon which any discharge will begin or recommence.
(Ord. No. 402, § 4, 1-12-00)

Sec. 20-81. Industrial discharge permitting—Categorical standards.

Within one hundred twenty (120) days subsequent to the effective date of a categorical pretreatment standard, an industrial

user subject to such standards shall submit an application for an industrial discharge permit amendment. The application shall contain the information noted under section 20-82.

(Ord. No. 402, § 4, 1-12-00)

Sec. 20-82. Industrial discharge permit application contents.

All users required to obtain an industrial discharge permit, and other users subject to these rules, as required by the director of public works, shall submit a permit application. The director of public works may require all users to submit as part of an application the following information:

- (1) All information required by subsection 20-111(b) of this article.
- (2) Description of activities, facilities, and production processes on the premises, including a list of all raw materials and chemicals used or stored at the facility that are, or could accidentally be, discharged to the POTW.
- (3) A list of all environmental permits held by or for the facility.
- (4) Each product produced by type, amount, process or processes, and rate of production.
- (5) Type and amount of raw materials processed (average and maximum per day).
- (6) Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers, floor drains, and appurtenances by size, location, and elevation, and all points of discharge and sampling locations.
- (7) The estimated average, maximum and total daily flow for each discharge and the time and duration of discharges.

- (8) Copies of existing pollution prevention plans and/or a description of all known pollution prevention opportunities that may exist at the facility.
- (9) Notification to the city of any proposed or existing discharge of listed or characteristic hazardous waste as required by 40 CFR 403.12.12(p).
- (10) In those instances in which the industrial user provides notification of the discharge of hazardous waste, the industrial user shall also provide the following certification: "I certify that (the company) has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree (the company) has determined to be economically practicable."
- (11) An indication of whether the conditions referenced in the application are existing or proposed.
- (12) Any other information as may be deemed necessary by the director of public works to evaluate the industrial discharge permit application.

Incomplete or inaccurate applications will not be processed and will be returned to the user for revision.
(Ord. No. 402, § 4, 1-12-00)

Sec. 20-83. Signatories and certification.

(a) All wastewater discharge permit applications, user reports and certification statements must be signed by an authorized representative of the user and contain the certification statement in section 20-120.25.

(b) If the designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new written authorization satisfying the requirements of this section must be submitted to the director of public works prior to or together with any reports to be signed by an authorized representative.

(Ord. No. 402, § 4, 1-12-00; Ord. No. 502, § 3, 10-8-08)

Sec. 20-84. Hauled wastewater permits.

(a) Septic tank waste may be introduced into the POTW only at locations designated by the director of public works, and at such times as are established by the director of public works. Transport and discharge of such waste shall comply with applicable city ordinances.

(b) The director of public works shall require generators of hauled industrial waste to obtain industrial discharge permits. The director of public works may require haulers of industrial waste to obtain industrial discharge permits. The director of public works may also prohibit the disposal of hauled industrial waste. All other requirements of this article apply to the discharge of hauled industrial waste.

(c) Industrial waste haulers may discharge loads only at locations designated by the director of public works. No load may be discharged without prior consent of the director of public works. The director of public works may collect samples of each hauled load to ensure compliance with applicable standards. The director of public works may require the industrial waste hauler to provide a waste analysis of any load prior to discharge.

(d) Industrial waste haulers shall provide a waste-tracking form for every load. This form shall include, at a minimum, the name and address of the industrial waste hauler, permit number, truck identification, names and addresses of sources of waste, and volume and characteristics of waste. The form shall identify the type of industry, known or suspected waste constituents, and a certification that the wastes are not hazardous wastes as defined in the state's hazardous waste rules (Env-Wm 110, 211-216, 351-353, 400-1000).

(Ord. No. 402, § 4, 1-12-00)

Secs. 20-85—20-95. Reserved.**DIVISION 5. INDUSTRIAL DISCHARGE PERMIT
ISSUANCE PROCESS****Sec. 20-96. Industrial discharge permit decisions.**

The director of public works will evaluate the data provided by the industrial user and may require additional information.

Within thirty (30) days of receipt of a complete industrial discharge permit application or ninety (90) days in the case of an application for a new or increased discharge requiring review and approval by DES, the director of public works will determine whether or not to issue an industrial discharge permit. The director of public works may deny any application for an industrial discharge permit, with just cause.
(Ord. No. 402, § 5, 1-12-00)

Sec. 20-97. Industrial discharge permit duration.

An industrial discharge permit shall be issued for a specified time period, not to exceed five (5) years or three (3) years in the case of a significant industrial user from the effective date of the permit. An industrial discharge permit may be issued for a period less than these intervals at the discretion of the director of public works. Each industrial discharge permit will indicate a specific date upon which it will expire.

Industrial discharge permits shall be terminated upon cessation of operations or transfer of business ownership, unless notification of such transfer is provided in accordance with section 20-101 of this article. All industrial discharge permits issued to a particular user are void upon the issuance of a new industrial discharge permit to that user.
(Ord. No. 402, § 5, 1-12-00)

Sec. 20-98. Industrial discharge permit contents.

An industrial discharge permit shall include such conditions as are deemed reasonably necessary by the director of public works to prevent pass through or interference, protect the quality of the water body receiving the treatment facility's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

- (1) Industrial discharge permits shall contain:
 - a. A statement that indicates industrial discharge permit duration, which in no event shall exceed five (5) years;

- b. A statement that the industrial discharge permit is nontransferable without prior notification to the city in accordance with section 20-101 of this article, and provisions for providing the new owner or operator with a copy of the existing industrial discharge permit;
- c. Effluent limitations including best management practices based on applicable pretreatment standards and requirements;
- d. Self-monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants requiring pollution prevention reports and, for pollutants to be monitored, the following: sampling location, sampling frequency, and sample type based on this article, and state and federal laws, rules and regulations;
- e. For users with reporting requirements, such reports at a minimum shall require:
 - 1. Periodic monitoring results indicating the nature and concentration of pollutants in the discharge from the regulated processes governed by pretreatment requirements and the average and maximum daily flow for these process units;
 - 2. A statement as to whether the applicable pretreatment standards and requirements are being met on a consistent basis and, if not, then what additional operation and maintenance practices and/or pretreatment systems are necessary; and
 - 3. Submittal of any monitoring results performed in addition to the requirements of the industrial discharge permit using procedures prescribed in the permit.
- f. A description of identified pollution prevention opportunities at the facility;

- g. A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. This schedule may not extend the time for compliance beyond that required by this article, applicable state and federal laws, rules and regulations; and
 - h. Requirements to control slug discharge, if determined by the director of public works to be necessary; and
 - i. A statement that compliance with the industrial discharge permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those that become effective during the term of the industrial discharge permit.
- (2) Industrial discharge permits may contain, but need not be limited to, the following conditions:
 - a. Limitations on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization.
 - b. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the POTW.
 - c. Requirements for the development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or nonroutine discharges.
 - d. Development and implementation of pollution prevention plans to reduce the amount of pollutants discharged to the POTW.
 - e. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW.

- f. Requirements for installation and maintenance of inspection and sampling facilities and equipment.
- g. Other conditions as deemed appropriate by the director of public works to ensure compliance with this article, and state and federal laws, rules, and regulations.

(Ord. No. 402, § 5, 1-12-00; Ord. No. 502, § 4, 10-8-08)

Sec. 20-99. Industrial discharge permit appeals.

Any person, including the user, may petition the director of public works to reconsider the terms of an industrial discharge permit within thirty (30) days of its issuance.

- (1) Failure to submit a timely petition for review shall be deemed to be a waiver of the administrative appeal.
- (2) In its petition, the appellant user must indicate the industrial discharge permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to place in the industrial discharge permit.
- (3) The effectiveness of the industrial discharge permit shall not be stayed pending the appeal.
- (4) If the director of public works fails to act within thirty (30) days, a request for reconsideration shall be deemed to be denied.
- (5) Aggrieved parties may appeal the conditions of the industrial discharge permit in accordance with section 20-120.360 of this article.

(Ord. No. 402, § 5, 1-12-00)

Sec. 20-100. Industrial discharge permit modification.

The director of public works may modify an industrial discharge permit for good cause, including, but not limited to, the following reasons:

- (1) To incorporate any new or revised federal, state, or local pretreatment standards or requirements.

- (2) To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of industrial discharge permit issuance.
 - (3) A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge.
 - (4) Information indicating that the permitted discharge poses a threat to the city's POTW, city personnel, or the water quality in the receiving waters.
 - (5) Violation of any terms or conditions of the industrial discharge permit.
 - (6) Misrepresentations or failure to fully disclose all relevant facts in the industrial discharge permit application or in any required reporting.
 - (7) Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 CFR 403.13.
 - (8) To correct typographical or other errors in the industrial discharge permit.
 - (9) To reflect a transfer of the facility ownership or operation to a new owner or operator.
- (Ord. No. 402, § 5, 1-12-00)

Sec. 20-101. Industrial discharge permit transfer.

Industrial discharge permits may be transferred to a new owner or operator only if the permittee provides at least sixty (60) days advance notice to the director of public works, and the director of public works approves the industrial discharge permit transfer. The notice to the director of public works shall include a written certification by the new owner or operator that:

- (1) States that the new owner and/or operator has no immediate intent to change the facility's operations and processes that generate wastewater to be discharged to the POTW;
- (2) Identifies the specific date on which the transfer is to occur; and

- (3) Acknowledges full responsibility for complying with the existing industrial discharge permit.

Failure to provide advance notice of a transfer shall render the industrial discharge permit void as of the date of facility transfer. (Ord. No. 402, § 5, 1-12-00)

Sec. 20-102. Industrial discharge permit reissuance.

A user with an expiring industrial discharge permit shall apply for reissuance of the industrial discharge permit by submitting a complete permit application, in accordance with section 20-82 of this article, a minimum of sixty (60) days prior to the expiration of the user's existing industrial discharge permit. Under no circumstances shall the permittee continue to discharge without an effective permit. An expired permit will continue to be effective and enforceable until the permit is reissued if:

- (1) The industrial user has submitted a complete permit application at least sixty (60) days prior to the expiration date of the user's existing permit; and
- (2) The failure to reissue the permit, prior to expiration of the previous permit, is not due to any act or failure to act on the part of the industrial user.

(Ord. No. 402, § 5, 1-12-00)

Sec. 20-103. Regulation of waste received from other jurisdictions.

(a) If another municipality, or user located within another municipality, contributes wastewater to the POTW, the city shall first enter into an intermunicipal agreement with the contributing municipality.

(b) Prior to entering into an agreement required by paragraph (a) above, the director of public works shall request the following information from the contributing municipality:

- (1) A description of the quality and volume of wastewater discharged to the POTW by the contributing municipality.
- (2) An inventory of all users located within the contributing municipality that are discharging to the POTW.

- (3) Such other information as the director of public works may deem necessary.
- (c) An intermunicipal agreement, as required by subsection (a) above, shall contain the following conditions:
 - (1) A requirement for the contributing municipality to adopt a sewer use ordinance that is at least as stringent as this article, and local limits that ensure that the pollutant loadings allocated to the contributing municipality are not exceeded. The requirement shall specify that such article and local limits shall be revised as necessary to reflect changes made to the city's ordinance or revisions to the loadings allocated to the contributing municipality.
 - (2) A requirement for the contributing municipality to submit a revised user inventory on at least an annual basis.
 - (3) A provision specifying which pretreatment implementation activities, including industrial discharge permit issuance, inspection and sampling, and enforcement, will be conducted by the contributing municipality; which of these activities will be conducted by the director of public works; and which of these activities will be conducted jointly by the contributing municipality and the director of public works.
 - (4) A requirement for the contributing municipality to provide the director of public works with access to all information that the contributing municipality obtains as part of its pretreatment activities.
 - (5) Limitations on the nature, quality, and volume of the contributing municipality's wastewater at the point where it discharges to the POTW.
 - (6) Requirements for monitoring the contributing municipality's discharge.
 - (7) A provision ensuring the director of public works' access to the facilities of users located within the contributing municipality's jurisdictional boundaries for the purpose of inspection, sampling, and any other duties deemed necessary by the director of public works.

- (8) A provision specifying remedies available for breach of the terms contained within the agreement.
- (d) Intermunicipal agreements shall be subject to approval by DES.
(Ord. No. 402, § 5, 1-12-00)

Secs. 20-104—20-110. Reserved.

DIVISION 6. REPORTING REQUIREMENTS

Sec. 20-111. Baseline monitoring reports.

(a) Within either one hundred eighty (180) days subsequent to the effective date of either a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing categorical users currently discharging to, or scheduled to discharge to the POTW, shall submit to the director of public works a report that contains the information listed in paragraph (b) below. At least ninety (90) days prior to commencement of discharge, new sources, and sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall submit to the director of public works a report that contains the information listed in paragraph (b) below. If necessary, a new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall provide estimates of its anticipated flow and quantity of pollutants to be discharged.

(b) Users described above shall submit the information set forth below:

- (1) *Identifying information.* The name and address of the facility, including the name of the operator and owner.
- (2) *Environmental permits.* A list of all permits issued under any law or rule implemented by EPA or DES that are held or are required by law to be held by or for the facility.
- (3) *Description of operations.* A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) conducted by such user.

This description should include a schematic process diagram that indicates the point(s) of discharge to the POTW from the regulated processes.

- (4) *Flow measurement.* Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary to allow use of the combined wastestream formula set out in 40 CFR 403.6(e).
- (5) *Measurement of pollutants.*
 - a. The categorical pretreatment standards applicable to each regulated process.
 - b. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the director of public works, of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in section 20-120.5 of this article.
 - c. Sampling shall be performed in accordance with procedures set out in section 20-120.10 of this article.
- (6) *Certification.* A statement, reviewed by the user's authorized representative and certified by a qualified professional, indicating whether the applicable pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O and M) and/or additional pretreatment systems are required to attain consistent compliance with the pretreatment standards and requirements.
- (7) *Compliance schedule.* If additional pretreatment and/or O and M is required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or O and M. The completion date in this schedule shall not be later than the compli-

ance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section shall meet the requirements specified in section 20-112 of this article.

- (8) *Signature and certification.* All baseline monitoring reports shall be signed and certified in accordance with section 20-83 of this article.

(Ord. No. 402, § 6, 1-12-00)

Sec. 20-112. Compliance schedules/progress reports.

The following conditions shall apply to the compliance schedules required by subsection 20-111(b)(7) and section 20-120.135 of this article:

- (1) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards, including, but not limited to, retaining an engineer, completing preliminary and final design plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation.
- (2) No increment referred to in subsection 20-112(1) shall exceed nine (9) months.
- (3) The user shall submit a progress report to the director of public works no later than fourteen (14) days following each date in the schedule and the final date of compliance which identifies, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the action being taken by the user to return to the established schedule.
- (4) In no event shall more than nine (9) months elapse between such progress reports to the director of public works.

(Ord. No. 402, § 6, 1-12-00)

Sec. 20-113. Reports on compliance with categorical pretreatment standard deadline.

Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the director of public works a report containing the information described in subsections 20-111(b)(1)—(5) of this article. For users subject to equivalent mass or concentration limitations established in accordance with the procedures in 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports shall be signed and certified in accordance with section 20-83 of this article. (Ord. No. 402, § 6, 1-12-00)

Sec. 20-114. Periodic compliance reports.

(a) All significant industrial users shall, at a frequency determined by the director of public works but in no case less than twice per year (in June and December), submit a report indicating the nature and concentration of pollutants in the discharge that are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a best management practice (BMP) or pollution prevention alternative, the user must submit documentation required by the director of public works or the pretreatment standard necessary to determine the compliance status of the user. All periodic compliance reports shall be signed and certified in accordance with section 20-83 of this article.

(b) All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to

maintain its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(c) If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the director of public works, using the procedures prescribed in sections 20-120.5 and 20-120.10 of this article, the results of this monitoring shall be included in the report.

(Ord. No. 402, § 6, 1-12-00; Ord. No. 502, § 5, 10-8-08)

Sec. 20-115. Reports of changed conditions.

Each industrial user shall notify the director of public works of any planned significant changes to the user's operations or system that might alter the nature, quality, or volume of its wastewater at least ninety (90) days before the change.

- (1) The director of public works may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submittal of an industrial discharge permit application under section 20-82 of this article.
- (2) Upon approval of the request by the city, a discharge permit request will be submitted by the city to DES on behalf of the user. All applicable DES review fees shall be provided by the user.
- (3) Upon approval of the discharge permit request by the DES, the director of public works may issue an industrial discharge permit under section 20-96 of this article or modify an existing industrial discharge permit under section 20-100 of this article in response to changed conditions or anticipated changed conditions.

(Ord. No. 402, § 6, 1-12-00)

Sec. 20-116. Reports of slug/potentially adverse discharges.

(a) In the case of any discharge, including, but not limited to, accidental discharges, discharges of a non-routine, episodic nature, a non-customary batch discharge, or a slug load, that may cause adverse impacts to the POTW, the user shall immediately

telephone and notify the director of public works of the incident. This notification shall include identifying the location of the discharge, type of waste, concentration and volume, if known, and corrective actions conducted by the user.

(b) Within five (5) days following such discharge, the user shall, unless waived by the director of public works, submit a detailed written report describing the cause(s) of the discharge and the measures to be conducted by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability that may be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability that may be imposed pursuant to this article.

(c) A notice shall be permanently posted on the user's employee bulletin board or other prominent place advising employees whom to call in the event of a discharge described in paragraph (a) above. Employers shall ensure that all employees who may cause such a discharge to occur or who may be present when a discharge occurs are advised of the emergency notification procedure.

(d) Significant industrial users are required to notify the director of public works immediately of any changes at its facility affecting the potential for a slug discharge.
(Ord. No. 402, § 6, 1-12-00; Ord. No. 502, § 5, 10-8-08)

Sec. 20-117. Reports from unpermitted users.

All users not required to obtain an industrial discharge permit shall provide appropriate reports to the director of public works as the director of public works may require.
(Ord. No. 402, § 6, 1-12-00)

Sec. 20-118. Notice of violation/repeat sampling and reporting.

If the results of sampling performed by a user indicate a violation, the user shall notify the director of public works within twenty-four (24) hours of becoming aware of the viola-

tion. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the director of public works within thirty (30) days subsequent to becoming aware of the violation. The user is not required to resample if the director of public works monitors at the user's facility at least once a month, or if the director of public works samples between the user's initial sampling and when the user receives the results of this sampling.

(Ord. No. 402, § 6, 1-12-00)

Sec. 20-119. Pollution prevention reports.

Permitted industrial users discharging pollutants on the "local limits" or "pollution prevention action" lists of section 20-49 of this article, at concentrations greater than background levels, shall report annually on pollution prevention activities undertaken to reduce or minimize the generation of wastes containing these pollutants. The city may publicize these efforts in the annual notification provided for in section 20-120.105.

(Ord. No. 402, § 6, 1-12-00; Ord. No. 599, § 6, 10-26-2022)

(formerly § 20-120)

Editor's note—Ord. No. 599, § 5, adopted October 26, 2022, repealed § 20-119, which pertained to notification of the discharge of hazardous waste and derived from Ord. No. 402, § 6, adopted January 12, 2000. Sections 20-120—20-120.30 were subsequently renumbered as §§ 20-119—20-119.30, as herein set out.

Sec. 20-119.5. Analytical requirements.

All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR part 136, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses shall be performed in accordance with procedures approved by EPA.

(Ord. No. 402, § 6, 1-12-00; Ord. No. 599, § 6, 10-26-2022)

(formerly § 20-120.5)

Sec. 20-119.10. Sample collection.

Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and

analysis performed during the period covered by the report, based on data that is representative of conditions occurring during the reporting period.

- (1) Except as indicated in subsections (b) and (c) below, the user must collect wastewater samples using twenty-four-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the director of public works. Where time-proportional composite sampling or grab sampling is authorized by the director of public works, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a twenty-four-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the director of public works, as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.
- (2) Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.
- (3) For sampling required in support of baseline monitoring and 90-day compliance reports required in section[s] 20-111 and 20-113 [40 CFR 403.12(b) and (d)], a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the director of public works may authorize a lower minimum. For the reports required by section 20-114 [40 CFR 403.12(e) and 403.12(h)], the

industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and requirements.
(Ord. No. 402, § 6, 1-12-00; Ord. No. 502, § 5, 10-8-08; Ord. No. 599, § 6, 10-26-2022)
(formerly § 20-120.10)

Sec. 20-119.15. Timing.

Written reports will be deemed to have been submitted on the date postmarked. For reports that are not mailed, the date of receipt of the report by the person designated in the industrial discharge permit shall govern.
(Ord. No. 402, § 6, 1-12-00; Ord. No. 599, § 6, 10-26-2022)
(formerly § 20-120.15)

Sec. 20-119.20. Record keeping.

Users subject to the reporting requirements of this article shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article and any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements and documentation associated with best management practices established under section 20-49(4). Records shall include the date, exact location, method, and time of sampling, and the name of the person(s) obtaining the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least five (5) years. This period shall be automatically extended for the duration of any litigation concerning the user or the city, or where the user has been specifically notified of a longer retention period by the director of public works. Before destroying the records, the industrial user shall request and receive permission from the city.
(Ord. No. 402, § 6, 1-12-00; Ord. No. 502, § 5, 10-8-08; Ord. No. 599, § 6, 10-26-2022)
(formerly § 20-120.20)

Sec. 20-119.25. Certification statements.

Certification of permit applications, user reports and initial monitoring waiver. The following certification statement is required to be signed and submitted by users submitting permit applications in accordance with section 20-83; users submitting baseline monitoring reports under section 20-111(b)(5); users submitting reports on compliance with the categorical pretreatment standard deadlines under section 20-113; users submitting periodic compliance reports required by section 20-114. The following certification statements must be signed by an authorized representative as defined in section 20-30.

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(Ord. No. 502, § 5, 10-8-08; Ord. No. 599, § 6, 10-26-2022)
(formerly § 20-120.25)

Sec. 20-119.30. Reserved.

DIVISION 7. POWERS AND AUTHORITIES OF
INSPECTORS

Sec. 20-120.35. Compliance monitoring.

The city shall investigate instances of noncompliance with the industrial pretreatment standards and requirements.

The city shall, as necessary, sample and analyze the wastewater discharges of contributing users and conduct surveillance and inspection activities to identify, independently of information supplied by such users, occasional and continuing noncompliance with industrial pretreatment standards. Each industrial user will be billed directly for costs incurred for analysis of its wastewater. (Ord. No. 402, § 7, 1-12-00)

Sec. 20-120.40. Right of entry—Inspection and sampling.

All industrial users discharging to the city's POTW shall allow unrestricted access by city, state and EPA personnel ("inspectors") for the purpose of determining whether the user is complying with all requirements of this article, and any industrial discharge permit or order issued hereunder. Users shall allow the inspectors ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

- (1) If a user has security measures in force that require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the inspectors will be permitted to enter without delay for the purposes of performing specific responsibilities.
- (2) The inspectors shall have the right to set up on the user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.
- (3) The inspectors may require the user to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a

safe and proper operating condition by the user at its own expense. All devices used to measure wastewater flow and quality shall be calibrated at least annually to ensure accuracy.

- (4) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the written or verbal request of the inspectors and shall not be replaced. The costs of clearing such access shall be borne by the user.

- (5) Unreasonable delays in allowing the inspector access to the user's premises shall be a violation of this article.
- (6) The inspector is authorized to obtain information concerning industrial processes that have a bearing on the kind or source of discharge to the public sewer. The industrial user may request that the information in question not be disclosed to the public in accordance with division 8 of this article. The information in question shall be made available upon written request to governmental agencies for uses related to this article, the NPDES permit, or the pretreatment program. The burden of proof that information should be held confidential rests with the user. However, information regarding wastewater discharge by the user (flow, constituents, concentrations, and characteristics) shall be available to the public without restriction.
- (7) While performing the necessary work on private properties referred to in this section, the inspector shall observe all safety rules applicable to the premises established by the user. The user shall be held harmless for injury or death to the inspector, and the city shall indemnify the user against loss or damage to its property by city employees and against liability claims and demands for personal injury or property damage asserted against the user and growing out of the monitoring activities, except as such may be caused by negligence or failure of the user to maintain safe conditions.
- (8) The inspector shall be permitted to enter all private properties through which the city holds a duly negotiated easement for the purposes of, but not limited to, inspection, observation, measurement, sampling, repair, and maintenance of any portion of the POTW lying within said easement. All entry and subsequent work, if any, on said easement, shall be done in full accordance with the terms of the duly negotiated easement pertaining to the private property involved.
- (9) The director of public works and other duly employees of the city bearing proper credentials and identification

shall inspect the premises of any consumer for leakage or other wastes of metered water upon the request of the consumer. Such a request may be required in writing by the city. The city shall not be held liable for any condition that may prevail or exist that is discovered by inspection of the city.

(Ord. No. 402, § 7, 1-12-00)

Sec. 20-120.45. Search warrants.

If the director of public works has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the city designed to verify compliance with this article or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, then the director of public works may seek issuance of a search warrant from the Claremont District Court.

(Ord. No. 402, § 7, 1-12-00)

Secs. 20-120.50—20-120.75. Reserved.

DIVISION 8. CONFIDENTIAL INFORMATION/PUBLIC PARTICIPATION

Sec. 20-120.80. Confidential information.

Information and data on a user obtained from reports, surveys, industrial discharge permit applications, industrial discharge permits, and monitoring programs, and from the director of public works' inspection and sampling activities, shall be available to the public without restriction, unless the user specifically requests, and is able to demonstrate to the satisfaction of the director of public works, that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by

the user furnishing a report that such information should be held confidential, the portions of a report that might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available immediately upon request to governmental agencies for uses related to the NPDES program or pretreatment program, and in enforcement proceedings involving the person providing the report. Wastewater constituents and characteristics and other "effluent data" as defined by 40 CFR 2.302 will not be recognized as confidential information and will be available to the public without restriction.

(Ord. No. 402, § 8, 1-12-00)

Sec. 20-120.85. Public participation.

The city shall comply with the public participation requirements of 40 CFR part 25 in the enforcement of industrial pretreatment standards and requirements.

(Ord. No. 402, § 8, 1-12-00)

**DIVISION 9. PUBLICATION OF POLLUTION PREVENTION
ACHIEVEMENTS**

Sec. 20-120.105. Annual publication.

The director of public works shall cause to be published annually, in the largest daily newspaper circulated in the city, a list of users whom during the previous twelve (12) months, demonstrated a commitment to reducing the volume and toxicity of waste discharges. All pollution prevention efforts, not just those that affect wastewater discharges, are subject to recognition. The following criteria will be used to identify published users:

- (1) Innovative ideas the facility has used to implement process changes that eliminate or reduce the volume or toxicity of waste generated.
- (2) The percentage of the facility's process water reused within the system or process.

- (3) The percentage of the facility's potential waste reused within the system or process.
- (4) Implementation of employee pollution prevention training and communication programs.
- (5) Voluntary performance of pollution prevention audits.
- (6) Spill control procedures/devices (e.g., secondary containment) the facility implements to prevent accidental chemical spills from entering the sewer system.
- (7) The environmental and/or economic benefits or successes derived from implementing pollution prevention methods.

The intent of the publication is to notify local consumers of the environmental responsiveness of local businesses, and to encourage industrial users to identify and implement opportunities for preventing pollution. As part of this publication, the city shall provide an evaluation of the impact of these changes to the POTW, and summarize the current status of pollutant loadings to the POTW and goals established by the POTW for pollution prevention efforts.

(Ord. No. 402, § 9, 1-12-00)

Secs. 20-120.110—20-120.125. Reserved.

DIVISION 10. ADMINISTRATIVE ENFORCEMENT REMEDIES

Sec. 20-120.130. Notification of violation.

When the director of public works determines that a user has violated, or continues to violate, any provision of this article, an industrial discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the director of public works may serve a verbal or written notice of violation to the user. Within the time period specified in the violation notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the user to the director of public works. Submittal of this plan in no way relieves the user of

liability for any violations occurring before or subsequent to receipt of the notice of violation. Nothing in this section shall limit the authority of the director of public works to take any action, including emergency actions or any other enforcement action, without initially issuing a notice of violation.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.135. Compliance schedule development.

The director of public works may require any user that has violated or continues to violate any provision of this article, an industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, to develop a compliance schedule. A compliance schedule pursuant to this section shall meet the requirements set out in section 20-112 of this article.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.140. Pollution prevention plan development.

The director of public works may require any user that has violated or continues to violate any provision of this article, an industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, to develop a pollution prevention plan in accordance with section 20-64 of this article. The pollution prevention plan must specifically address violations for which this action was undertaken. The pollution prevention plan shall be developed using good engineering judgment and shall be submitted to the director of public works no later than sixty (60) days after the user was notified of this requirement.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.145. Publication of users in significant non-compliance.

The director of public works shall cause to be published annually, in the largest daily newspaper circulated in the city

where the POTW is located, a list of the users that, during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements. (Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.150. Show cause orders.

The director of public works may order a user that has violated, or continues to violate, any provision of this article, an industrial discharge permit or order issued hereunder, or any other pretreatment standard or requirement, to appear before the director of public works and show cause why the proposed enforcement action should not be taken. Notice shall be served on the user specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the user show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least ten (10) days prior to the hearing. Such notice may be served on any authorized representative of the user. A show cause hearing shall not be a bar against, or prerequisite for, executing any other action against the user. (Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.155. Cease and desist orders.

When the director of public works determines that a user has violated, or continues to violate, any provision of this article, an industrial discharge permit or order issued hereunder, or any other pretreatment standard or requirement, or that the user's past violations are likely to recur, the director of public works may issue an order to the user directing it to cease and desist all such violations and directing the user to:

- (1) Immediately comply with all requirements; and
- (2) Implement such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.160. Consent orders.

The director of public works is hereby empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such orders shall include specific action to be taken by the user to correct the noncompliance within a time period also specified by the order. Orders may also contain such other requirements as might be reasonably necessary and appropriate to address the noncompliance, including the installation of pretreatment systems, additional self-monitoring, and management practices. Such orders shall have the same force and effect as administrative orders issued pursuant to sections 20-120.150 and 20-120.155 of this article and shall be judicially enforceable.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.165. Industrial discharge permit termination.

Any industrial user who violates the following conditions of this article or a wastewater discharge permit or order, or any applicable state or federal law, is subject to permit termination:

- (1) Violation of permit conditions;
- (2) Failure to accurately report the wastewater constituents and characteristics of its discharge;
- (3) Failure to report significant changes in operations or wastewater constituents and characteristics; or
- (4) Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling.

Such user will be notified of the proposed termination of its discharge and be offered an opportunity to show cause under section 20-120.150 of this article why the proposed action should

not be taken. Exercise of this option by the director of public works shall not be a bar to, or a prerequisite for, taking any other action against the user.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.170. Termination of discharge.

In addition to the provisions in section 20-120.165 of this article, any user who violates the following conditions is subject to discharge termination:

- (1) Violation of industrial discharge permit conditions.
- (2) Failure to accurately report the wastewater constituents and characteristics of its discharge.
- (3) Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge.
- (4) Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling.
- (5) Violation of the pretreatment standards in division 2 of this article.

Such user will be notified of the proposed termination of its discharge and be offered an opportunity to show cause under section 20-120.150 of this article why the proposed action should not be taken. Exercise of this option by the director of public works shall not be a bar to, or a prerequisite for, taking any other action against the user.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.175. Emergency suspensions.

The director of public works may immediately suspend a user's discharge, subsequent to informal notice to the user, whenever such suspension is necessary to terminate an actual or threatened discharge that reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of POTW personnel or the public. The director of public works may also immediately suspend a user's discharge, after notice and

opportunity to respond, that threatens to interfere with the operation of the POTW, or that presents, or may present, an endangerment to the environment.

- (1) Any user notified of a suspension of its discharge shall immediately terminate or eliminate its wastewater discharge. In the event of a user's failure to immediately comply with the suspension order, the director of public works may implement such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The director of public works may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the director of public works that the period of endangerment has passed, unless the termination proceedings in section 20-120.165 or 20-120.170 of this article are initiated against the user.
- (2) A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures implemented to prevent any future occurrence, to the director of public works prior to the date of any show cause or termination hearing under sections 20-120.150, 20-120.165 or 20-120.170 of this article.

Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section.

(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.180. Recovery of expenses.

Any person or industrial user violating any of the provisions of this article shall be liable to the city for any expense, loss, or damage occasioned the city by reason of such violation. If the director of public works shall have caused the disconnection of a drain from a public sewer, the city may collect the expenses associated with completing the disconnection from any person or user responsible for, or willfully concerned in, or who profited by such violation. The city may thereafter refuse to permit the

restoration of the former connection or of any new connection to the property concerned in the violation until the claim of the city for the cost of completing such disconnection shall have been paid in full plus interest and the reasonable cost of any legal expenses incurred by the city in connection therewith.
(Ord. No. 402, § 10, 1-12-00)

Sec. 20-120.185. Harm to city property.

No person shall maliciously, willfully, or negligently damage, destroy, uncover, deface or tamper with any structure, appurtenance or equipment that is part of the public sewerage system. Any person violating this provision shall be subject to immediate arrest under charge of disorderly conduct pursuant to the local ordinances, and shall also be subject to penalties under state and federal statutes.
(Ord. No. 402, § 10, 1-12-00)

Secs. 20-120.190—20-120.200. Reserved.

DIVISION 11. JUDICIAL ENFORCEMENT REMEDIES

Sec. 20-120.210. Injunctive relief.

When the city determines that a user has violated, or continues to violate, any provision of this article, an industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the city may petition the Sullivan County Superior Court through the city's attorney for the issuance of a temporary or permanent injunction, as appropriate, that restrains or compels the specific performance of the industrial discharge permit, order, or other requirement imposed by this article on activities of the user. The city may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, implementing any other action against a user.
(Ord. No. 402, § 11, 1-12-00)

Sec. 20-120.215. Civil penalties.

(a) A user who has violated, or continues to violate, any provision of this article, an industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the city for a maximum civil penalty of ten thousand dollars (\$10,000.00) per violation, per day, plus actual damages incurred by the POTW. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

(b) The city may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the city. The city shall petition the court to impose, assess, and recover such sums.

(c) In determining the amount of civil liability, the court shall consider all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

(d) Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, implementing any other action against a user. (Ord. No. 402, § 11, 1-12-00)

Sec. 20-120.220. Criminal prosecution.

Any person or industrial user who willfully or negligently violates any provision of this article or any orders or permits issued hereunder shall, upon conviction, be guilty of a violation, punishable by a fine not to exceed ten thousand dollars (\$10,000.00) for each violation. Every separate provision violated shall constitute a separate violation. Every day that a violation occurs shall be deemed a separate violation.

(Ord. No. 402, § 11, 1-12-00)

State law references—RSA 47:17(I); RSA 149-I:6; RSA 31:39(III).

Sec. 20-120.225. Nonexclusive remedies.

The remedies provided for in this article are not exclusive. The city may take any, all, or any combination of these actions against

a noncompliant user. Enforcement of pretreatment violations will generally be in accordance with the city's enforcement response plan. However, the city may pursue other action against any user without limitation, including ex parte temporary judicial relief to prevent a violation of this article. Further, the city is empowered to pursue more than one (1) enforcement action against any noncompliant user.

(Ord. No. 402, § 11, 1-12-00)

Secs. 20-120.230—20-120.245. Reserved.

DIVISION 12. SUPPLEMENTAL ENFORCEMENT ACTION

Sec. 20-120.250. Performance bonds.

The director of public works may decline to issue or reissue an industrial discharge permit to any user who has failed to comply with any provision of this article, a previous industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, unless such user first files a satisfactory bond, payable to the city, in a sum not to exceed a value determined by the director of public works to be necessary to achieve consistent compliance.

(Ord. No. 402, § 12, 1-12-00)

Sec. 20-120.255. Liability insurance.

The director of public works may decline to issue or reissue an industrial discharge permit to any user who has failed to comply with any provision of this article a previous industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

(Ord. No. 402, § 12, 1-12-00)

Sec. 20-120.260. Water supply severance.

Whenever a user has violated or continues to violate any provision of this article, an industrial discharge permit, or order issued hereunder, or any other pretreatment standard or require-

ment, water service to the user may be severed. Service will only recommence, at the user's expense, subsequent to satisfactory demonstration of its ability to comply.
(Ord. No. 402, § 12, 1-12-00)

Sec. 20-120.265. Public nuisances.

A violation of any provision of this article an industrial discharge permit, or order issued hereunder, or any other pretreatment standard or requirement is hereby declared a public nuisance and shall be corrected or abated as directed by the director of public works. Any persons creating a public nuisance shall be subject to the provisions of the city code governing such nuisances, including reimbursing the city for any costs incurred in removing, abating, or remedying said nuisance.
(Ord. No. 402, § 12, 1-12-00)

Sec. 20-120.270. Contractor listing.

Users that have not achieved compliance with applicable pretreatment standards and requirements are not eligible to receive a contractual award for the sale of goods or services to the city. Existing contracts for the sale of goods or services to the city held by a user found to be in significant noncompliance with pretreatment standards or requirements may be terminated at the discretion of the director of public works.
(Ord. No. 402, § 12, 1-12-00)

Secs. 20-120.275—20-120.295. Reserved.

DIVISION 13. AFFIRMATIVE DEFENSES TO DISCHARGE VIOLATIONS

Sec. 20-120.300. Upset.

(a) For the purposes of this section, "upset" means an exceptional incident in which there is unintentional and temporary noncompliance with pretreatment standards due to factors beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improv-

erly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

(b) An upset shall constitute an affirmative defense to an action brought for noncompliance with pretreatment standards if the requirements of subsection (c) below, are met.

(c) A user who intends to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

- (1) An upset occurred and the user can identify the cause(s) of the upset;
- (2) At the time being of the upset, the facility was operated in a prudent and workman-like manner and in compliance with applicable operation and maintenance procedures; and
- (3) The user has submitted the following information to the director of public works within twenty-four (24) hours of becoming aware of the upset (if this information is provided orally, a written submission must be provided within five (5) days):
 - a. A description of the discharge and cause of noncompliance;
 - b. The period of noncompliance, including exact dates and times or, if not corrected, the amount of time the noncompliance is expected to continue; and
 - c. Action being implemented and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.
 - d. In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.
 - e. Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with pretreatment standards.

- f. Users shall control all discharges to the extent necessary to maintain compliance with pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

(Ord. No. 402, § 13, 1-12-00)

Sec. 20-120.305. Prohibited discharge standards.

A user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in subsection 20-47(1) of this article or the specific prohibitions in sections 20-47(2) of this article if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

- (1) A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or
- (2) No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the city was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

(Ord. No. 402, § 13, 1-12-00)

Sec. 20-120.310. Bypass.

- (a) For the purposes of this section:
 - (1) *Bypass* means the intentional diversion of wastestreams from any portion of a user's treatment facility.
 - (2) *Severe property damage* means substantial physical damage to property, damage to the treatment facilities that causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably

be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(b) A user may allow any bypass to occur that does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of subsections (c) and (d) of this section.

(c) (1) If a user knows in advance of the need for a bypass, it shall submit prior notice to the director of public works, at least ten (10) days before the date of the bypass, if possible.

(2) A user shall submit oral notice to the director of public works of an unanticipated bypass that exceeds applicable pretreatment standards within twenty-four (24) hours from the time it becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the amount of time it is expected to continue; and steps implemented or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The director of public works may waive the written report on a case-by-case basis if the oral report has been received within twenty-four (24) hours.

(d)(1) Bypass is prohibited, and the director of public works may initiate enforcement action against a user for a bypass, unless:

- a. Bypass was required to prevent loss of life, personal injury, or severe property damage;
- b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of

reasonable engineering judgement to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance; and

- c. The user submitted notices as required under subsection (c) of this section.
 - (2) The director of public works may approve an anticipated bypass, subsequent to considering its adverse effects, if the director of public works determines that it will meet the three conditions listed in subsection (d)(1) of this section.
- (Ord. No. 402, § 13, 1-12-00)

Secs. 20-120.315—20-120.325. Reserved.

DIVISION 14. VALIDITY

Sec. 20-120.330. Generally.

(a) All ordinances or parts of ordinances in conflict herewith are hereby repealed.

(b) The validity of any section, clause, sentence, or provision of this article shall not affect the validity of any other part of this article that can be given effect without such invalid part or parts.

(Ord. No. 402, § 14, 1-12-00)

DIVISION 15. INTERPRETATION OF REQUIREMENTS

Sec. 20-120.355. Interpretation.

The provisions of this article with respect to the meaning of technical terms and phrases, the classification of different types of sewers, the regulations with respect to making connections to sewers or drains, and other technical matters shall be interpreted and administered by the director of public works acting in and for the City of Claremont, New Hampshire through the city council.

(Ord. No. 402, § 15, 1-12-00)

Sec. 20-120.360. Appeals.

Any party aggrieved by any decision, regulation or provision under this article, as amended, from time to time, shall have the right of appeal within thirty (30) calendar days of said decision to the director of public works, who shall issue a decision within thirty (30) calendar days. If said appeal is denied by the director of public works, then the aggrieved party shall have the right to appeal to the Sullivan County Superior Court for equitable relief, provided that said appeal is entered within thirty (30) calendar days from the issuance of the decision of the director of public works.

(Ord. No. 402, § 15, 1-12-00)

ARTICLE III. WATER*

DIVISION 1. GENERALLY

Secs. 20-121—20-135. Reserved.

DIVISION 2. CROSS-CONNECTION CONTROL†

Sec. 20-136. Purpose.

The purpose of this article is to define and establish a cross-connection control program for the city and to regulate, control and prevent the contamination of public drinking waters by the backflow of water or other liquids, gases, mixtures or substances into the distribution system of the public water supply system from a source or sources other than its intended source.

(Ord. No. 321, Art. I, 4-25-90)

***Cross reference**—Plumbing standards, § 5-141.

†**Editor's note**—Ord. No. 321, adopted April 25, 1990, was not enacted as a specific amendment or addition to the Code; therefore, its provisions have been treated as superseding §§ 20-136, 20-137 and 20-139, which pertained to similar subject matter and were derived from Ord. No. 254, Arts. II, IV and VI.

Also, at the editor's discretion, provisions of Art. V of Ord. No. 254, formerly codified as § 20-138, have been renumbered as § 20-149.

Sec. 20-137. Authority.

The authority for the enactment of this article is RSA 485:11, RSA 485:12 and New Hampshire Code of Administrative Rules, Part Env-Ws 364.

(Ord. No. 321, Art. II, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-138. Definitions.

As used in this division, unless the context clearly indicates otherwise, the following words shall have the following meanings:

Air gap shall mean the unobstructed vertical distance through the free atmosphere between the lowest opening from the pipe or faucet supplying water to a tank, plumbing fixture or other device and the flood level rim of the receptacle.

Antibackflow device shall mean a device or means to prevent backflow.

Approved backflow prevention device shall mean an anti-backflow device or devices that are approved by the New Hampshire Department of Environmental Services and the superintendent.

Approved source shall mean a source of water utilized by a public water system for distribution to the public for consumptive purposes and which is approved by the New Hampshire Department of Environmental Services for said use following a required and/or approved treatment process.

Atmospheric vacuum breaker shall mean a device used to prevent back-siphonage and not to be used under static pressure.

Back pressure shall mean pressure created by mechanical or other means causing water, liquids or other substances to flow or move in a direction opposite to what is intended.

Back-siphonage shall mean a backflow resulting from a negative or reduced pressure in the distribution pipes of a potable water supply.

Backflow shall mean the flow of water or other liquids, mixtures or substances into the distribution pipes of a potable supply of water from any source or sources other than the intended source.

Backflow preventer shall mean an approved anti-backflow device.

Backflow preventer with intermediate atmospheric vent shall mean a device having two (2) independent operating check valves separated by an intermediate chamber with a means for automatically venting it to the atmosphere. The check valves are force-loaded to a normally closed position and the venting means is force-loaded to a normally open position.

Backflow prevention device tester-certified shall mean a person who has proven his competency to the satisfaction of the New Hampshire Department of Environmental Services. Each person who is certified to make tests or to repair, overhaul and make reports on backflow prevention devices shall be conversant with the applicable laws, rules and regulations and have had at least two (2) years of experience in plumbing or pipe fitting or have other qualifications which, in the opinion of the department, are equivalent.

Barometric loop shall mean a loop rising at least thirty-five (35) feet, at its topmost point, above the highest fixture it supplies.

Check valve shall mean a self-closing device which is designed to permit the flow of fluids in one (1) direction and to close if there is a reversal of flow.

Containment shall mean that method and philosophy of backflow prevention which requires a backflow preventer at the water service entrance.

Contaminant shall mean any physical, chemical, biological, or radiological substance or matter in water.

Cross-connection shall mean any actual or potential physical connection or arrangement between two (2) otherwise separate systems, one (1) of which contains potable water from a public water system and the other is any waste pipe, soil pipe, sewer

drain, other unapproved source of water or water from a source of questionable quality and/or steam chemicals, gases or other contaminants. Without limiting the generality of the foregoing, the term "cross-connection" shall also include any bypass arrangements, jumper connections, removal section, swivel or changeover connection and other temporary or permanent connection through which backflow can or may occur.

Customer or owner shall mean any person who has legal title or license to operate or habitate in a property at which a cross-connection inspection is to be made or at which a cross-connection is present.

Department shall mean the New Hampshire Department of Environmental Services.

Double check valve assembly shall mean a device incorporating two (2) spring-loaded check valves within a single unit, having two (2) shut-off valves and the necessary appurtenances for testing.

High degree of hazard shall mean that if a backflow were to occur, the resulting effect on the water supply could cause illness or death if consumed by humans. The foreign substance may be toxic to humans either from a chemical, bacteriological or radiological standpoint. The effects of the contaminant(s) may result from a short-term or long-term exposure.

Low degree of hazard shall mean that if a backflow were to occur, the resulting effect on the water supply would be a change in its aesthetic qualities. The foreign substance must be nontoxic to humans.

Person shall mean any individual, partnership, company, public or private corporation, political subdivision or agency of the state, department, agency or instrumentality of the United States or any other legal entity.

Polluted shall mean the presence of any foreign substance (organic, inorganic, biological or radiological) in water which tends to degrade its quality so as to constitute a hazard or impair

the usefulness or quality of the water to a degree which does not create an actual hazard to the public health but which does adversely and unreasonably affect such waters for domestic use.

Potable water shall mean water from a source which has been approved by the department.

Pressure vacuum breaker shall mean a device with an internally spring-loaded check valve and a spring-loaded air inlet valve, having two (2) shut-off valves and the necessary appurtenances for testing, designed to operate under constant pressure but not back pressure.

Public water system shall mean a public water system as defined in RSA 485:1-a, XV, including and meaning a system for providing piped water to the public for human consumption if such system has at least fifteen (15) service connections or regularly serves twenty-five (25) individuals daily at least sixty (60) days out of the year. A public water system shall not include the portion of the service pipe owned and maintained by a customer of the public water system.

Reduced pressure backflow device (RPBD or RPZ) shall mean a device incorporating two (2) or more check valves and an automatically operating differential relief valve located between the two (2) check valves, two (2) shutoff valves and equipment with necessary appurtenances for testing. The device shall operate to maintain pressure in the zone between the two (2) check valves at a pressure less than that on the public water supply side of the device. At cessation of normal flow, the pressure between the check valves shall be less than the supply pressure. In case of leakage of either check valve, the differential relief valve shall operate to maintain this reduced pressure by discharging to the atmosphere.

Service connection shall mean the combination of the water shutoff and is the full length of the pipe which extends from the building to the public water main; i.e., where the water purveyor loses jurisdiction and sanitary control over the water at its point of delivery to the customer's water system. "Service connection"

shall also include water service connections from a fire hydrant and all other temporary or emergency water service connections from the public potable water system.

Superintendent shall mean the superintendent of the water and sewer department of the city or his authorized deputy, agent or representative.

Supplier shall mean any person who controls, owns or generally manages a public water supply system.

Water utility shall mean the suppliers of water.
(Ord. No. 321, Art. III, 4-25-90; Ord. No. 361, 11-10-94; Ord. No. 490, § 1, 11-14-07)

Sec. 20-139. Cross-connection prohibited.

(a) No person shall maintain upon premises they own or occupy a physical cross-connection between the distribution system of a public water supply, the water which is being used for drinking, domestic or culinary purposes, and the distribution system of any unapproved water supply, unless the installation has been reviewed and approved by the superintendent and a permit has been issued as described in this division.

(b) The superintendent shall have the authority to terminate any water service connection to any facility where a cross-connection is maintained without an approved backflow prevention device.

(Ord. No. 321, Art. IV, 4-25-90)

Sec. 20-140. Approval and permit required.

(a) Prior to construction and installation of any air gap separation with a tank and pump arrangement, reduced pressure backflow preventer or double check valve assembly, a design data sheet, with plans showing the method of protecting the public water system, must be approved by the superintendent for the installation of such device. The owner of the premises shall be responsible for ensuring that the design data sheet and plans are submitted to the superintendent for approval.

(b) Prior to the installation of any pressure or atmospheric vacuum breaker, backflow preventer with intermediate atmospheric vent, barometric loop, or air gap separation with tank and pump arrangements, the plans and specifications for the plumbing work must receive a permit issued by the superintendent and the local plumbing inspector.

(c) Any person owning or occupying premises upon which one (1) or more cross-connections are present shall apply for and obtain a separate permit from the superintendent for each reduced pressure backflow preventer and double check valve assembly installed under paragraph (a) above, and such person shall obtain approval from the superintendent and the local plumbing inspector for the initial installation of, and for any change in the installation of, each backflow prevention device installed under this section.

(d) Applications for the permit must be made on the cross-connection permit application form provided by the city. Permits are valid for a five-year period unless revoked by the superintendent. Application for renewal of the permit must be made on or before January 1 of the year in which it expires. Applications must be accompanied by the appropriate permit fee and the inspection, test and repair forms. The cost of the permit shall be as set forth in the license, permit and service fee schedule of the city, on file in the city clerk's office. City and state agencies shall be exempt from the permit fee but must submit the inspection, test and repair forms.

(e) The superintendent shall revoke any permit which is found to be in noncompliance with this division.
(Ord. No. 321, Art. IV, 4-25-90)

Sec. 20-141. Types of backflow prevention devices required.

(a) Subject to the provisions of this section, Table 1 shall serve as the guide for the minimum type of containment protection required. Table 2 shall serve as a guide for recommended internal protection of the premises.

Table 1. Containment (Required)

AG = Air Gap
 RPBD = Reduced Pressure Backflow Device
 DCVA = Double Check Valve Breaker
 AVB = Atmospheric Vacuum Breaker
 NONE = No Cross-Connection Permitted

Type of Hazard on Premises	Acceptable Types of Backflow Preventer					Comments
	AG	RPBD	DCVA	AVB	NONE	
Sewage treatment plant	X	X				*If no health hazard
Sewage lift pumps	X	X				
Domestic water booster pumps			X			
Food and drug processing	X	X	X*			
Laboratory equipment:						
a. Health hazard	X	X				
b. Nonhealth hazard			X			
Equipment under hydraulic test or operation	X	X				
Sinks with hose threads on inlet	X	X		X		
Hospitals, mortuaries, clinic	X	X				
Plating facilities	X	X				

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Type of Hazard on Premises	Acceptable Types of Backflow Preventer					Comments
	AG	RPBD	DCVA	AVB	NONE	
Irrigation systems	X	X		X		*No back pressure; each case treated separately
Radioactive materials or nuclear reactors	X	X				
Submerged inlets	X	X		X		*If no health hazard and no back pressure
Dockside facilities	X	X				
Valved outlets or fixtures with hose attachments						Each case treated separately: *If no health hazard **If no health hazard and no back pressure
	X	X	X*	X**		
Commercial laundries	X	X				
Commercial washing machines	X	X		X		Normally the machine has a built-in air gap
High and low pressure boilers	X	X				If chemical is added more frequently than once a year
Photo processing equipment	X	X				
Reservoirs—Cooling tower recirculating systems	X	X	X*			*If no health hazard
Firefighting systems	X	X	X*			*If no health hazard
Solar energy systems						Backflow preventer with intermediate atmospheric vent for residential with no chemicals
	X	X				

Type of Hazard on Premises	Acceptable Types of Backflow Preventer					Comments
	AG	RPBD	DCVA	AVB	NONE	
Buildings over 4 stores		X	X*			Should have 2 parallel devices. *If no health hazard
Unapproved auxiliary supply	X	X				
Premises where inspection is restricted		X				
Laboratories	X	X	X*			*If no health hazard
Chemical plants using a water system	X	X				
Petroleum processing or storage plants	X	X				
Public swimming pools	X	X				

Table 2. Internal Protection (Recommended)

AG = Air Gap
 RPBD = Reduced Pressure Backflow Device
 DCVA = Double Check Valve Breaker
 AVB = Atmospheric Vacuum Breaker
 NONE = No Cross-Connection Permitted

Type of Hazard on Premises	Acceptable Types of Backflow Preventer					Comments
	AG	RPBD	DCVA	AVB	NONE	
Sewage treatment plant						Each case should be treated separately
Sewage lift pumps					X	
Domestic water booster pumps			X			
Food and drug processing	X	X	X*			*If no health hazard

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Type of Hazard on Premises	Acceptable Types of Backflow Preventer					Comments
	AG	RPBD	DCVA	AVB	NONE	
Laboratory equipment:						
a. Health hazard					X	
b. Nonhealth hazard				X		
Equipment under hydraulic test or operation	X	X				
Sinks with hose threads on inlet				X		
Hospitals, mortuaries, clinic	X	X				
Plating facilities					X	
Radioactive materials or nuclear reactor	X	X				
Dockside facilities	X	X				
Commercial dish washing machines				X		
High and low pressure boilers			X			
Photo processing equipment	X	X				
Reservoirs, cooling tower recirculating systems	X	X				
Firefighting systems	X	X	X*			*If no health hazard
Unapproved auxiliary supply	X	X				
Laboratories	X	X				
Chemical plants using a water system	X	X				

<i>Type of Hazard on Premises</i>	<i>Acceptable Types of Backflow Preventer</i>					<i>Comments</i>
	<i>AG</i>	<i>RPBD</i>	<i>DCVA</i>	<i>AVB</i>	<i>NONE</i>	
Petroleum processing or storage plants	X	X				
Private swimming pools	X	X				

(b) Only backflow devices approved by the New Hampshire Department of Environmental Services shall be used.

(c) A list of approved backflow devices may be obtained from the department.

(d) Only the following types of backflow devices may be used for the containment of on-premise hazards for high and low hazard situations respectively:

(1) High hazard:

- a. Air gap.
- b. Reduced pressure backflow device.
- c. Combination of the above.

(2) Low hazard:

- a. Air gap.
- b. Atmospheric vacuum breaker (where there are no bacteria hazards).
- c. Pressure vacuum breaker
- d. Double check valve assembly.
- e. Reduced pressure backflow device
- f. Combination of the above.

(e) Subject to the authority of the superintendent to issue the final determination of what type of device is required for each cross-connection in individual cases, depending on the degree of health hazard and type of backflow involved, the acceptable devices for backflow prevention include, and are limited to, air gap separation, reduced pressure backflow preventers, double

check valve assemblies, atmospheric or pressure vacuum breakers, backflow preventers with intermediate atmospheric vents and barometric loops.

(f) There shall be no bypass around any approved backflow prevention device unless the same type of approved backflow prevention device is installed on the bypass.

(g) Each fire protection system must be evaluated by the superintendent for a determination of the types of backflow prevention devices required. No changes in the equipment comprising an existing system, the source of water supply or a system or the use of chemicals shall be made without prior written approval of the superintendent. Fire protection systems having the following actual or potential cross-connections shall be required to have backflow prevention:

- (1) Any system with a pumper connection into which chemical additives may be injected;
- (2) Any system with a pumper connection into which nonpotable water may be injected;
- (3) Any system which may be subject to contamination from antifreeze, "foamite" or other chemicals used in fighting fires;
- (4) Any system which can be contaminated from auxiliary or used water supplies or private storage tanks;
- (5) Any system and storage reservoir which can be treated for prevention of scale formation, corrosion, algae or slime growths; or
- (6) Any system with pumper connections within one thousand five hundred (1,500) feet of an auxiliary unapproved source.

Gate valves required for fire protection systems must be O, S and Y type.

(Ord. No. 321, Art. IV, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-142. Installation requirements.

(a) *Reduced pressure backflow preventers.* Reduced pressure backflow preventers may be used to protect against backflow caused by back pressure or by back-siphonage and to protect the water supply system from substances which are hazardous to health only when they are installed in the following manner:

- (1) For devices installed as on-premise protection, the reduced pressure backflow preventer shall be installed on the owner's side of the water meter on the potable water supply line.
- (2) Before installing a reduced pressure backflow preventer, all pipelines shall be thoroughly flushed to remove foreign material.
- (3) Drinking and domestic water lines, lines for safety showers and lines for eye wash units must be taken off the upstream side of reduced pressure backflow preventers for devices installed as in-plant protection.
- (4) The reduced pressure backflow preventer shall be located so as to permit easy access and provide adequate and convenient space for maintenance, inspection and testing.
- (5) The owner of the device shall be able to shut down water lines after reasonable notice during normal business hours to permit necessary testing and maintenance of the device; provided, that if it is not possible to meet this requirement, a bypass line equipped with an approved type reduced pressure backflow preventer shall be installed.
- (6) Tightly closing valves must be installed at each end of the device.
- (7) The device must be protected from freezing, flooding and mechanical damage.
- (8) If the device is to be installed on a hot water line, a device approved for use at the elevated temperature must be used.

- (9) If a drain is to be provided for relief valve port, there must be an approved air gap separation between the port and drain line. To be approved, the air gap must be at least twice the internal diameter of the discharge line.
- (10) Pit installation shall be approved only as provided in paragraph (f) below.

(b) *Double check valve assemblies.* Double check valve assemblies may be used to protect against backflow caused by back pressure or back siphonage and to protect a public water supply system from substances which may be objectionable, but not hazardous to health, only if they are installed in the following manner:

- (1) Drinking and domestic water lines for safety showers and lines for eye wash units must be taken off the upstream side of the double check valve assembly for devices installed as in-plant protection.
- (2) The double check valve assembly shall be installed with adequate space to facilitate maintenance, inspection and testing.
- (3) The double check valve assembly shall be installed on the owner's side of the meter on the potable water supply line.
- (4) The owner of the device shall be able to shut down water lines after reasonable notice during normal business hours to permit necessary testing and maintenance of the device; provided, that if it is not possible to meet this requirement, a bypass line equipped with an approved type double check valve assembly shall be installed.
- (5) Tightly closing valves must be installed at each end of the device.
- (6) The device must be protected from freezing, flooding and mechanical damage.
- (7) If the device is to be installed in a hot water line, a device for use at the elevated temperature must be used.
- (8) Pit installation shall be approved only as provided in paragraph (f) below. be used to protect against

(c) *Vacuum breakers.* Vacuum breakers shall not be used to protect against backflow due to back pressure and shall not be installed as protection for high hazard conditions as determined by the superintendent. Vacuum breakers may be used for low health hazards only if they are installed in the following manner:

- (1) Vacuum breakers must be installed at least six (6) inches above the flood level rim of the fixture they serve.
- (2) Atmospheric vacuum breakers must be installed downstream of the last shut servicing the fixture or equipment.
- (3) Vacuum breakers must not be installed in locations where the device is subject to corrosive fumes, dust or grit.
- (4) Vacuum breakers must be protected against flooding, freezing and mechanical damage.
- (5) Atmospheric vacuum breakers shall not be used under conditions of static line pressure. Pressure vacuum breakers may be used under conditions of static line pressure.

(d) *Barometric loops.* These may be used only to protect against back-siphonage and shall be approved-for use only when no health hazard exists and when back pressure is not possible.

(e) *Air gap separation.* Air gap separation may be used to protect against backflow caused by back pressure or back-siphonage and to protect the public water supply system from substances which are hazardous to health and shall be approved for use only when installed in the following manner: the minimum air gap must be twice the diameter of the effective opening of the inlet pipe above the flood level rim of the receptacle being fed, but in no case shall it be less than one (1) inch.

(f) *Pit installation.* No devices shall be installed in pits except as approved by the superintendent in cases of unique circumstances, and then only as follows:

- (1) The pit interior shall be a minimum of ten (10) feet long, six (6) feet wide, and must have a clear height six and one-half (6½) feet high;
- (2) The pit must be watertight;

- (3) The pit opening and manhole cover must be at least thirty (30) inches in diameter;
 - (4) The foothold inserts must be of steel, aluminum or other material approved by the superintendent, must be a maximum of twelve (12) inches apart, and must be installed so that the top foothold is within twelve (12) inches of the manhole cover and the bottom foothold is within twelve (12) inches of the pit floor;
 - (5) An adequate drain must be installed and the drain shall not be connected to the sewer;
 - (6) The pit floor shall be pitched to the drain; and
 - (7) If built in a roadway, the top of the pit must be adequately reinforced.
- (Ord. No. 321, Art. IV, 4-25-90)

Sec. 20-143. Certification of testers.

All backflow prevention device testers must be certified by the New Hampshire Department of Environmental Services.
(Ord. No. 321, Art. V, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-144 Inspection, testing and overhauling of devices.

(a) All testing of backflow prevention devices conducted in accordance with this division must be conducted by a person who is a certified backflow prevention device tester.

(b) Within fourteen (14) days after the installation of devices in accordance with plans reviewed and approved by the superintendent, the owner or his representative shall notify the superintendent to arrange inspection of the installation.

(c) Inspections performed by the superintendent or his designee shall be subject to an inspection fee as set forth in the license, permit and service fee schedule of the city on file in the city clerk's office.

(d) Reduced pressure backflow preventers, double check valve assemblies, pressure type vacuum breakers and air gap separations may be inspected and tested by the superintendent, supplier of water, and the New Hampshire Department of Environmental Services at any time.

(e) The public water supplier shall test each reduced pressure backflow preventer and double check valve assembly and shall inspect air gap separations with tank and pump arrangements semiannually. If the supply is used less than six (6) months of the year, these devices shall be inspected and tested by the supplier of water once each year. The test shall be conducted by a certified backflow prevention device tester and recorded on a form approved by the superintendent. Copies of the inspection forms shall be maintained on file by the department of public works and submitted to the owner.

(f) Devices failing a test or found defective shall be overhauled, repaired or replaced by a plumber licensed by the state and reinspected within two (2) weeks of the initial inspection date. A report of the failure and repair shall be submitted by the owner or his representative to the superintendent on a form approved by the superintendent within fourteen (14) days of the repair.

(g) The owner must maintain on the premises a spare parts kit and any special tools required for removal and reassembly of devices which are to be tested. The presence of these materials shall be recorded on the cross-connection inspection sheet.

(h) The owner or his representative must provide labor on the premises as necessary to allow inspection and testing of devices by the superintendent, the supplier of water for certified backflow prevention device testers.

(i) The owner or his representation shall notify the superintendent in writing no later than thirty (30) days prior to the removal from service of any permitted device and such notification shall include the reason for removal and must indicate if the cross-connection has been eliminated.

(j) The owner or his representative shall notify the superintendent in writing no later than thirty (30) days prior to a change in ownership. Notification must include, at a minimum, the name and address of the new owner as well as documentation with proof of change in ownership.

(Ord. No. 321, Art. V, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-145. Responsibilities.

(a) *Superintendent.* The superintendent is responsible for the safety of the public water supply system and shall have, in addition to any other responsibilities contained herein, the following specific responsibilities relative to cross-connections:

- (1) To review and approve design data sheets and plans for proposed new installations of reduced pressure backflow preventers, double check valve assemblies and air gap separations with tank and pump arrangements
- (2) To inspect new installations of reduced pressure backflow preventers, double check valve assemblies and air gap separations with tank and pump arrangements for compliance with approved plans and to inspect the installation of any other approved backflow prevention device as deemed necessary to ensure proper cross-connection control.
- (3) Surveying and inspecting industrial, commercial and institutional premises served by the public water system to determine if cross-connections exist and that all cross-connections are properly protected by an appropriate device.
- (4) Reporting to the New Hampshire Department of Environmental Services annually no later than April 1st of the year following the inspection year in the format outlined in Env-Ws 364.10. Two (2) separate listings shall be provided. One (1) list shall be for all high degree of hazard situations and the other shall be for all low degree of hazard situations. The following information shall be provided:
 - a. Permit number.

- b. Owner's name.
 - c. Location of backflow preventer.
 - d. Manufacturer, size and model number of the backflow preventer.
 - e. The date of each inspection.
 - f. The result of each inspection.
 - g. If the inspection result was unsatisfactory, the date at which the backflow preventer was returned to compliance.
- (5) Making the inspections of all reduced pressure backflow preventers and double check valve assemblies installed in the distribution system.
 - (6) To deny water service to any premises where cross-connections exist until corrective action is taken. If necessary, water service shall be discontinued for failure to test or maintain backflow prevention devices in a manner acceptable to the superintendent. If it is found that the backflow prevention device has been removed or bypassed or otherwise rendered ineffective, water service shall be discontinued unless corrections are made immediately.
 - (7) Assist the New Hampshire Department of Environmental Services in any inspection of approved backflow device installations.
 - (8) Reporting to the owner any violations of this division by sending a copy of the inspection sheet.
 - (9) Notifying all owners of their responsibilities relative to cross-connections.
- (b) *Owner.* The owner of any premises with one (1) or more cross-connections has the following responsibilities relative to cross-connections:
- (1) Applying for and obtaining all necessary approvals and permits for the maintenance of cross-connections and installation of backflow prevention devices and applying annually for the renewal of the permit;

- (2) Complying with all provisions of any permit, regulation and the backflow prevention program;
- (3) Ensure the proper installation, operation and maintenance of an approved backflow preventer;
- (4) Eliminate and disconnect any cross-connections that are maintained between their private system and the supplier's water system, unless deemed necessary by the superintendent and protected by an approved backflow preventer for the degree of hazard associated with the cross-connection;
- (5) Ensure the protection of the "in-plant" water supply system by the installation of other approved backflow preventers where necessary;
- (6) Having suitable arrangements made so that inspections can be made during regular business hours;
- (7) Maintaining a spare parts kit and any special tools required for the removal and reassembly of devices;
- (8) Providing necessary labor for inspection and testing by the superintendent, by an agent of the New Hampshire Department of Environmental Services, by the supplier of water or by certified backflow prevention device testers;
- (9) Having any device that fails an inspection or test repaired by a plumber licensed by the state, having repaired devices reinspected within two (2) weeks of the date of inspection and submitting one (1) copy of a form approved by the superintendent for recording repairs and retesting of the device; and
- (10) Maintaining on the premises for five (5) years complete records on all devices including as-built plans, design data sheets, and copies of maintenance and inspection forms, and make these forms available for reviewing and copying by the superintendent at reasonable times.

(c) *Owner and superintendent jointly.* The owner and the superintendent shall be jointly responsible to ensure that all backflow prevention devices are tested and inspected on a regular basis as specified by this division.

(d) *Testers.* Certified backflow prevention device testers have the following responsibilities relative to cross-connections:

- (1) Have a backflow preventer device test kit that is maintained in proper working order;
- (2) Make competent inspections and be competent to use all of the equipment necessary to properly test and inspect the repairs to backflow preventers;
- (3) Record on forms designated by the superintendent the test results for each inspection conducted; and
- (4) Submit copies of inspection reports to the department of public works and the owner within thirty (30) days of the inspection.

(Ord. No. 321, Art. V, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-146. Right of entry.

All owners or operators of commercial, industrial or institutional premises served by a public water supply system shall authorize the superintendent or his representative or an agent of the New Hampshire Department of Environmental Services, upon presentation of their credentials, to enter their premises without a warrant for the purposes of inspecting and surveying their water systems for cross-connections and assuring compliance with this division, whether or not the superintendent has evidence that the system is in violation of an applicable legal requirement.

(Ord. No. 321, Art. V, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-147. Public notification.

Noncompliance with any portion of this division may require, at the discretion of the superintendent, public notification:

- (1) Information on the type of noncompliance; and
- (2) Procedures for mitigating such noncompliance.

(Ord. No. 321, Art. V, 4-25-90)

Sec. 20-148. Enforcement.

(a) Whoever maintains a cross-connection without a permit, or after revocation of the permit to maintain such connection, and whoever maintains a cross-connection without installing the appropriate backflow prevention device required by the New Hampshire Department of Environmental Services, this division and the superintendent shall be punished by a fine not more than five hundred dollars (\$500.00), each day being a separate offense.

(b) Upon due notice the superintendent may revoke any permit at any time whenever, in his opinion, the cross connection or the maintenance thereof no longer complies with this division.

(c) In order to ensure the delivery of a fit and pure water supply, the superintendent may issue a written order requiring the supplier of public water to cease supplying water to any premises if one (1) or more cross-connections are maintained in violation of the requirements of this division, or requiring any person to take actions as are reasonable and necessary to prevent or to eliminate cross-connections.

(d) The superintendent shall deny water service to any premises where cross-connections exist until corrective action is taken. If necessary, water service shall be discontinued for failure to test or maintain backflow prevention devices in a manner acceptable to the superintendent. If it is found that the backflow prevention device has been removed or bypassed or otherwise rendered ineffective, water service shall be discontinued unless corrections are made immediately.

(Ord. No. 321, Art. V, 4-25-90; Ord. No. 490, § 1, 11-14-07)

Sec. 20-149. Fees.

The city manager is empowered to establish and collect fees and charges associated with inspection and testing of premises and devices.

(Ord. No. 254, Art. V, 9-11-85)

DIVISION 3. WATER USE RESTRICTIONS

Sec. 20-150. Purpose and applicability.

The purpose of this division is to ensure that the use of water supplies is regulated in the best interests of the city to protect the public health and safety when there is a potential or existing water supply shortage as a result of drought conditions or from other emergency related to either the source or distribution of water within the city, pursuant to authority granted to the municipality to regulate public water systems under RSA 38:26 and to restrict the use of private wells to water lawns under RSA 41:11-d.

This division shall apply to all water users receiving water from the city's water distribution system. It shall also apply to the use of water from private wells for residential outdoor lawn watering during a state or federally declared drought. For purposes of this division, a "water user" shall include any individual, corporation, trust, partnership, joint stock company, association, state, municipality, commission, United States government or any agency thereof, political subdivision of the state or any interstate body, or other entity.
(Ord. No. 551, § 1, 12-14-2016)

Sec. 20-151. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Drought means a sustained and regionally extensive occurrence of appreciably below average natural water availability in the form of precipitation, stream flow or groundwater as determined by:

- (1) The New Hampshire Drought Management Team as designated by the New Hampshire Drought Management Plan;
- (2) Declaration of a state of emergency by the governor's office; or

(3) United States Drought Monitor.

Impervious surface means artificial structures, including but not limited to roads, sidewalks, driveways, parking lots, patios, siding and roofs that are covered by impenetrable materials such as asphalt or other pavement, concrete, brick, stone, shingles or other surfaces that limit the absorption or movement of liquids such as water.

Landscape means vegetative growth and features on land, whether annual or perennial in nature, including but not limited to lawns, plants, shrubs, trees and ornamental fixtures.

Water supply shortage means a situation when insufficient water is available to meet the present or anticipated needs of the city, resulting from such events as a drought or other water emergency, such as contamination or a major infrastructure failure.

(Ord. No. 551, § 1, 12-14-2016)

Sec. 20-152. Water use restrictions.

(a) Upon declaration of a drought, water supply shortage or other water emergency, the city manager or his/her designees are authorized to determine and implement certain restrictions necessary to conserve and maintain adequate reserves of the public water supply. Such restrictions include, but are not limited to the following and may be implemented, individually or collectively, upon public notice, to the degree required by the nature of the water supply shortage or other water emergency:

- (1) Voluntary or mandatory restrictions of landscape watering, or other exterior uses by any method;
- (2) Restriction of the hours of landscape watering or other exterior uses;
- (3) Restriction of landscape watering or other exterior uses to certain days or addresses (odd/even designations);
- (4) Prohibition of filling of swimming pools of greater than one hundred (100) gallons capacity;
- (5) Prohibition of use of automated landscape sprinkler systems;

- (6) Prohibition of washing areas with impervious surfaces;
 - (7) Prohibition of washing vehicles or boats at non-commercial facilities.
- (b) The following uses are exempt from local water use restrictions unless by order of state or federal government:
- (1) Use by city officials in the interest of public health and safety;
 - (2) Hand irrigation of crops used for food by residents at a residential property;
 - (3) Water to sustain animal life;
 - (4) Cash crops and farms;
 - (5) Commercial car washes and commercial washing of vehicles; unless there is a declaration of an extreme or exceptional drought;
 - (6) Golf course greens, athletic fields, flower shops or garden centers, unless there is a declaration of an extreme or exceptional drought;
 - (7) Private water sources for other than residential outdoor lawn watering unless it can be demonstrated that the use of such water directly affects the public water supply.
- (Ord. No. 551, § 1, 12-14-2016)

Sec. 20-153. Public notice.

Notification of intent to implement water use restrictions due to a water supply shortage or other emergency shall be posted at least three (3) days prior to the effective date of such restrictions in two (2) public locations and published in a newspaper of general circulation or by such other means reasonably determined to notify all affected water users.

Upon a determination that a water supply shortage or other emergency no longer exists, the city shall provide public notice

of the termination of restrictions in two (2) public locations and published in a newspaper of general circulation or by such other means reasonably determined to notify all affected water users. (Ord. No. 551, § 1, 12-14-2016)

Sec. 20-154. Enforcement and penalties.

Any city code enforcement official or sworn officer of the Claremont Police Department may initiate an enforcement action against any violation of the provisions of this division.

Any person failing to comply with the restrictions imposed pursuant to this division shall be subject to a fine and/or be subject to imposition of civil penalties pursuant to RSA 38:26, II, and/or RSA 651:2, IV, as indicated herein. In addition to a monetary penalty, the city is authorized to discontinue the furnishing of water where orders and restrictions have been violated. Such discontinuance shall be made pursuant to RSA 38:31 and may be continued for so long as there is evidence that the violations are continuing.

- (1) *First violation:* Written warning;
 - (2) *Second violation:* Two hundred fifty dollars (\$250.00) per day fine;
 - (3) *Third violation:* One thousand dollars (\$1,000.00) per day fine and discontinuance of water service. Payment of all penalties is required and a reconnection fee will be charged before water service is restored.
- (Ord. No. 551, § 1, 12-14-2016)

Sec. 20-155. Reserved.

**ARTICLE IV. RATES, CHARGES AND BILLING
PROCEDURES***

DIVISION 1. GENERALLY

Secs. 20-156—20-165. Reserved.

***Cross references**—Department of finance, § 2-181 et seq.; division of tax collection responsible for collecting all utility rates and charges and all taxes, § 2-185; receipts or disbursements for the water and sewer utilities and accounts shall be separate accounts, § 2-182.

DIVISION 2. WATER

Sec. 20-166. Water rates.

All users of water supplied by the city shall be charged a variable fee on the basis of the number of cubic feet of water used, per one hundred (100) cubic feet, semiannually, according to the rate schedule on file in the city manager's office.

(Ord. No. 265, § 1, 9-10-86; Ord. No. 495, § 1, 5-14-08; Ord. No. 505, § 1, 3-10-2010, eff. 7-1-2010)

Sec. 20-167. Fixed charge.

(a) In addition to charges assessed based on the number of cubic feet of water used, all users of water supplied by the city shall be charged a fixed charge, semiannually, based on the size of the user's water meter.

(b) All users of water supplied by the city whose service location is unable to support a water meter, as determined and approved by the director of public works, shall be charged a flat rate, semiannually.

(Ord. No. 265, § 2, 9-10-86; Ord. No. 435, 4-10-02; Ord. No. 495, § 2, 5-14-08; Ord. No. 505, § 1, 3-10-2010, eff. 7-1-2010)

Sec. 20-168. Private fire service charges.

In addition to the charges stated in this division, each user of water supplied by the city who has a water connection for private fire prevention purposes shall pay, semiannually, an additional charge which is on file in the city manager's office.

(Ord. No. 265, § 3, 9-10-86)

Sec. 20-169. Public fire service.

The fire department shall pay to the water department, semi-annually, a fee which is on file in the city manager's office for each city fire hydrant.

(Ord. No. 265, § 4, 9-10-86)

Sec. 20-170. Billing—Water.

Water consumption will be calculated based on actual water meter readings. The city, at its option, may bill the customers on a monthly, quarterly, or semiannual basis. Each billing may include a minimum charge as stated above, for the period commencing, plus any additional charges incurred during the period ending, plus fire services charges, if any, for the period commencing. Payment shall be due immediately upon receipt of the bill.

The city may send estimated water bills based on prior usage. However, the city shall read water meters no less than semiannually and reconcile estimated water charges no less than once a year.

(Ord. No. 265, § 5, 9-10-86; Ord. No. 435, 4-10-02)

Sec. 20-171. Payment.

(a) *Billing due date; failure to pay.* All billings are due when received. If a customer fails to pay all charges within thirty (30) days after the billing date, the city may place a lien on the real estate of the user under state statute and/or discontinue service to the user under the procedures outlined in subsection (b).

(b) *Termination of service.*

(1) *Criteria.*

- a. The city may disconnect service to a residential customer after notice if the customer has failed to pay the sum due as represented on the water bill within thirty (30) days of its mailing. No water service shall be terminated until the following is completed:
 1. A bill has become sixty (60) days overdue.
 2. The city provides fifteen (15) days' notice of termination of service. Such notice will be sent on or after the thirty-first day following the postmark date of the original billing.
 3. Service to the customer shall be terminated after the fifteen-day notice unless the customer has made arrangements with the city to pay the outstanding bill.
 4. In the event a customer cannot pay a bill in full, the city will continue service to the customer if the customer has:
 - (i) Paid a reasonable portion of the outstanding bill;
 - (ii) Agrees to pay the outstanding balance of the bill in monthly installments acceptable to the city; and
 - (iii) Agrees to pay all future bills within thirty (30) days.

All such payment arrangements shall be in writing and signed by both the customer and the city. All agreements for payment arrangements entered into by the customer and the city shall provide that, upon default of the agreement by the customer, the city may terminate service upon fifteen (15) days' written notice.

5. Notice. The notice sent out by the city to the water customer shall include the following information:
- (i) The date of termination of water service;
 - (ii) The reason for termination of water service;
 - (iii) The manner by which the customer may avoid a termination of service;
 - (iv) The name and phone number of the person at the public works department that the customer may contact for further information;
 - (v) A statement informing the owner of real estate with tenants that the tenants will be notified after the expiration of the fifteen-day notice [and] that the tenant may place the water service in their own names for prospective billing.
 - (vi) The notice shall also contain the name and address of the customer and the address of the premises affected, if different.

The customer shall the right to request a hearing in front of the city council to contest a proposed shutoff or dispute the amount alleged to be due. The proposed termination of service shall be delayed pending a decision by the city council on the customer's appeal.

- b. Reserved.

(2) *Third party tenants.*

- a. *Third party tenant units.* In the event a termination is being caused by a landlord's failure to pay charges as due, the city shall use its best efforts to determine whether there are third party tenant users in the building. If such tenants are present in a building scheduled for a water termination, the third party tenants shall be entitled to notice of the potential termination and notice of the opportunity to contest

the termination of service and the opportunity to allow tenants to begin making payments on the owner's account.

- b. *Notice to third party tenants.* The city shall provide notice of termination to third party tenants by posting a notice in all common areas of the building that will be affected by the proposed termination of service. Such notice shall contain the following information:
 - 1. All the provisions in subsection (b)(1)a.5 above on notice to customers;
 - 2. A recommendation that the tenant immediately contact the landlord;
 - 3. The tenant may have the right to sue his or her landlord in the city district court for failure to pay the water bill pursuant to RSA 540-A, and to contact their attorney or state legal assistance for representation; and
 - 4. The right of the tenant to begin making payments on the owner's account to avoid termination of service.
- c. *Rights of third party tenant to continue service.*
 - 1. Conditions of new service. The city shall not require a third party tenant to pay any part of a landlord's past due charges.
 - 2. Payment of prospective bill. Third party tenants will be offered an opportunity to place prospective water bills in their own names or those of the tenant association. If the building is serviced by a common meter, the city shall fairly apportion the water bill among the third party tenants. If separate meters are installed in the building, each third party tenant shall be billed directly for usage for his or her separate meter.

3. Once the prospective bill is placed in the third party tenant's name, that tenant shall have all the same rights as the customer, as provided in this section.
4. The superintendent may bill monthly on these accounts.
5. The superintendent may require the installation of separate or new meters to effectuate this section.

(Ord. No. 265, § 6, 9-10-86; Ord. No. 360, 11-10-94)

Sec. 20-172. Enforcement.

This division shall be enforced by the water department.
(Ord. No. 265, § 7, 9-10-86)

Sec. 20-173. Service to connections.

(a) New, renewed, maintained or repaired services shall be charged to the property owner from the water main on the basis of actual cost of labor, equipment and materials, plus an overhead charge for connections up to two-inch diameter pipe, as established by the license, permit and fee schedule on file with the city clerk. All service connections shall remain the property of the city.

- (1) The city shall provide meters for pipes up to two (2) inches in diameter. The property owner shall provide a suitably protected, accessible and secure location and plumbing to accept the meter. The meter shall remain the property of the city.
- (2) All meters utilized by private land owners shall meet or exceed city specifications.

(b) Service connection existing and in use on November 10, 1994, shall be exempt from the construction standards and material specifications until replaced or reconstructed. The superintendent may, however, order or make the repair, reconstruction, modification, or replacement of an existing service connection when he determines that the service connection is not functioning properly, or will not accept maintenance and repair tools and equipment, or is in such poor condition and continued

use would or could be detrimental to the public potable water system, treatment facilities, the public health, the occupants of the premises, or the environment. The city shall have the right to assess fees based on cost plus overhead to the owner and deny water services and/or lien the property for any unpaid charges. (Ord. No. 361, 11-10-94)

Sec. 20-174. Rate schedule review.

Charges and fees for users of water supplied by the city shall be reviewed and revised as may be required to ensure that adequate revenue is generated to fund the cost of operation, maintenance and capital improvement of the city's water system, including the water treatment facility. (Ord. No. 505, § 1, 3-10-2010, eff. 7-1-2010)

Secs. 20-175—20-185. Reserved.

DIVISION 3. SANITARY SEWER SYSTEM

Sec. 20-186. Sewer user classes established and defined.

For purposes of this division, there shall be two (2) user classes, which are defined as follows:

- (1) *Major industrial users* means any users discharging non-domestic waste into the city's sanitary sewer system in volumes of twenty-five thousand (25,000) gallons per day or more, or, which in the opinion of the city or its designee has the potential to adversely affect the operation of the wastewater treatment facility, including high strength wastes, or which is so defined by state or federal law or regulation, including the Clean Water Act (33 United States Code § 1251 et seq.) and the General Pretreatment Regulations (40 Code of Federal Regulations Part 403), as may be amended from time to time.
- (2) *Residential, commercial or minor industrial users* means all users other than major industrial users, who discharge either domestic and non-domestic waste into the city's sanitary sewer system in volumes less than twenty-five thousand (25,000) gallons per day, which in the opinion of

the city or its designee does not have the potential to adversely affect the operation of the wastewater treatment facility.

(Ord. No. 269, § 1, 9-10-86; Ord. No. 346, § 1, 1-13-93; Ord. No. 506, § 1, 3-10-2010)

Sec. 20-187. Fixed charge.

(a) In addition to charges assessed based on the number of cubic feet discharged, all users of the city's sanitary sewer system shall be charged a fixed charge, quarterly.

(b) All users of the city's sanitary sewer system whose service location is unable to be metered, as determined and approved by the department of public works, shall not be assessed a fixed charge, but shall be billed a flat rate, quarterly.

(Ord. No. 269, § 2, 9-10-86; Ord. No. 346, § 2, 1-13-93; Ord. No. 506, § 1, 3-10-2010; Ord. No. 588, § 1, 7-14-2021)

Sec. 20-188. Major industrial user fees.

In addition to the fixed and metered charges, major industrial users may be assessed a fee, as a result of the user's industrial discharge permit and federally mandated industrial pre-treatment requirements. Such fee shall be based on the treatment required and the user's proportional use of the city's sewage treatment facility, as determined by the user's proportional contribution of flow, BOD and suspended solids.

(Ord. No. 269, § 3, 9-10-86; Ord. No. 346, § 3, 1-13-93; Ord. No. 506, § 1, 3-10-2010)

Sec. 20-189. Residential, commercial and minor industrial user fees.

In addition to the fixed fee, all residential, commercial and minor industrial sewer users shall be charged a usage fee for each one hundred (100) cubic feet of wastewater discharged into the sanitary sewer system.

(Ord. No. 269, § 4, 9-10-86; Ord. No. 346, § 4, 1-13-93; Ord. No. 506, § 1, 3-10-2010)

Sec. 20-190. Nonmetered fee.

Users who discharge into the city's sanitary sewer system through unmetered service shall be charged a flat rate, which shall be billed quarterly.

(Ord. No. 269, § 5, 9-10-86; Ord. No. 346, § 5, 1-13-93; Ord. No. 506, § 1, 3-10-2010; Ord. No. 588, § 1, 7-14-2021)

Sec. 20-191. Rate schedule review.

Charges and fees for users of the city's sanitary sewer system shall be reviewed and revised as may be required to ensure that adequate revenue is generated to fund the cost of operation, maintenance and capital improvement of the wastewater treatment plant. The current rate schedule for users of the sanitary sewer system shall be kept on file in the city manager's office.

(Ord. No. 269, § 6, 9-10-86; Ord. No. 346, § 6, 1-13-93; Ord. No. 506, § 1, 3-10-2010; Ord. No. 588, § 2, 7-14-2021)

Sec. 20-192. Entrance fee.

New sewer users shall be charged an entrance fee which is on file in the city manager's office to connect to the sewer main. However, if the sewer department is not required to do any more than inspect the installation, then the fee shall be the amount which is on file in the city manager's office. This entrance fee shall not apply to special sewer assessment districts or impact fees duly established by the city council.

(Ord. No. 269, § 7, 9-10-86; Ord. No. 346, § 7, 1-13-93)

Sec. 20-193. Billing—Sewer.

Major commercial/industrial users and other users determined by the city or its designee will be billed monthly.

All other users of the wastewater system will be billed at the same time as they are billed for water in accordance with section 20-170.

(Ord. No. 269, § 8, 9-10-86; Ord. No. 346, § 8, 1-13-93; Ord. No. 435, 4-10-02)

Sec. 20-194. Enforcement.

This division shall be enforced by the city sewer division of the department of public works.

(Ord. No. 269, § 9, 9-10-86; Ord. No. 346, § 9, 1-13-93)

Sec. 20-195. Penalty.

If payment [under this division] is not made within thirty (30) days of the billing date, the user's water and/or sewer service may be discontinued. The user will be notified of disconnection and given fifteen (15) days to pay monies due. Any payment not made within such thirty (30) days of the billing date shall be subject to an interest charge of twelve (12) percent per annum commencing on the day of billing.

(Ord. No. 269, § 10, 9-10-86; Ord. No. 346, § 10, 1-13-93)

Sec. 20-196. Appeal.

Any user who feels his user charge is inequitable may make written appeal to the city requesting a review of their user charge. Review of the request shall be made by the city and, if substantiated, the user charge will be recomputed and the new charge applied to the next billing period.

(Ord. No. 269, § 11, 9-10-86; Ord. No. 346, § 11, 1-13-93)

Secs. 20-197—20-209. Reserved.**ARTICLE V. WATER AND WASTEWATER CONNECTION,
INSPECTION AND CAPACITY REPLACEMENT FEES****Sec. 20-210. Purpose.**

(a) New connections and some changes in uses served by existing connections to the city water and wastewater systems use up system capacities that must eventually be replaced in order to serve future connections. Capacity replacement is essential to continued city growth and economic development. It is recognized that the existing users made the initial investments in the capital facilities that provided excess capacity in the water and wastewater systems. Consequently, the city council has determined that it would be inequitable and unfair for existing users to bear the financial burden of constructing the capital improvements needed to replace the system capacities taken by new connectors or the expanded use of existing connectors. Therefore, it is the purpose of this article to define requirements and establish procedures for the imposition of equitable and fair

fees on persons making new connections or altering the use of existing connections in order to generate funds for financing the capital improvements needed to replace and maintain excess capacity in the water and wastewater systems.

(b) Said fees established by this article are based on the rationale, methodology and computations provided in the report entitled "Water and Wastewater Capacity Replacement Fees-Methodology and Computations" dated December 15, 1998 on file in the city manager's office.

(c) Further, this article recognizes that new connectors to the water and wastewater systems should reimburse the city for costs incurred in physically connecting them to the systems.
(Ord. No. 317, Art. I, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-211. Authority.

This article is adopted under the authority of New Hampshire RSA 149-I:7.
(Ord. No. 317, Art. II, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-212. Definitions and abbreviations.

Abbreviations and terms used for the purposes of this article are provided in Article I.
(Ord. No. 317, Art. III, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-213. Required fees.

(a) *Water system new connections.* All new connections to the city water system shall be assessed the following:

- (1) Either a water connection or inspection fee;
- (2) A water system capacity replacement fee;
- (3) A water distribution system improvement fee if off-site improvements to the water distribution system are required to accommodate the new connection.

(b) *Wastewater system new connections.* All new connections to the City wastewater system shall be assessed the following:

- (1) Either a wastewater connection or an inspection fee;

- (2) A wastewater capacity replacement fee;
- (3) A wastewater capacity replacement fee surcharge if the new connection is authorized by an industrial discharge permit (IDP) to discharge high organic strength wastewater i.e. (BOD > 330 mg/L and/or TSS > 370 mg/L).
- (4) A wastewater collection system improvement fee if off-site improvements to the wastewater collection system are required to accommodate the new connection.

(c) *Water system existing connections.* Changes in uses served by existing connections to the water system shall be assessed the following:

- (1) A water system capacity replacement fee for any additional water use resulting from the change in a use. The increase in water use shall be determined using the procedures set forth in section 20-215. However, improvements to single family residences that do not add separate living units shall not be considered a change in use and no additional water capacity fee shall be assessed.
- (2) A water system improvement fee if off-site improvement to the city water distribution system is required to accommodate and serve the change in use.

(d) *Wastewater system existing connections.* Changes in uses served by existing connections to the wastewater system shall be assessed the following:

- (1) A wastewater system capacity replacement fee for any additional wastewater discharge resulting from the change in a use. The increase in wastewater discharge shall be determined using the procedures set forth in section 20-215. However, improvements to single family residences that do not add separate living units shall not be considered a change in use and no additional wastewater capacity fee shall be assessed.
- (2) A wastewater capacity replacement fee surcharge if the existing connection is authorized by an industrial dis-

charge permit (IDP) to discharge or increase its discharge of high organic strength wastewater i.e. (BOD > 330 mg/L and/or TSS > 370 mg/L).

- (3) A wastewater system improvement fee if off-site improvement to the city wastewater collection system is required to accommodate and serve the change in use.

(Ord. No. 317, Art. IV, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-214. Computation of capacity replacement and connection fees

- (a) Capacity replacement fees shall be computed as follows:

- (1) The water system capacity replacement fee shall be computed by multiplying the current water capacity replacement fee rate (\$ per gallon per day) established by the city council times the connector's average daily water use (gallons per day) as determined by the procedures set forth in section 20-215. However, connectors to the water system who are determined to use an average of one hundred (100) gallons of water or less per day shall be assessed the minimum water system capacity fee established by the city council.
- (2) The wastewater system capacity replacement fee shall be computed by multiplying the current wastewater system capacity replacement fee rate (\$ per gallon per day) established by the city council times the connector's average daily wastewater discharge (gallons per day) as determined by the procedures set forth in section 20-215. However, connectors to the wastewater system who are determined to discharge one hundred (100) gallons of wastewater or less per day shall be assessed the minimum wastewater system capacity fee established by the city council.

- (b) The wastewater system capacity replacement fee surcharge shall be computed by multiplying the biochemical oxygen demand (BOD) and total suspended solids (TSS) surcharge rates (\$ per pound per day) established by the city council times the connector's daily discharge of excess BOD and TSS (pounds per day) as determined by the procedures set forth in section 20-216.

(c) Water and wastewater connection fees shall be assessed in the amounts established by the city council for connections to the water and wastewater system accomplished by city personnel and equipment.

(d) Water and wastewater inspection fees shall be assessed in the amounts currently established by the city council for connections to the city's water and wastewater system authorized by the city for accomplishment by private contractor.

(e) Water distribution system and wastewater collection system improvement fees shall consist of the connector's proportionate share of the capital costs of off-site improvements to the city's water distribution or wastewater collection system needed to accommodate and serve the connector. Off-site improvements shall not include system capacity improvements funded by capacity fees. The connector's proportionate share shall be determined by the city based on engineering analyses of the capital improvements to assess the respective benefits to the connector and the city. System improvement fees may be established by negotiation, be made a condition of zoning approval and shall be implemented by written agreement between the city and connector.

(f) The city council shall establish and may annually adjust the water and wastewater capacity replacement fee rates and minimum fees, the wastewater (BOD and TSS) capacity replacement surcharge rates and the water and wastewater connection and inspection fees. Annual adjustment of these fees shall account for and reflect increases in labor, material, equipment and construction costs and for new capacity related improvements to the water and wastewater systems not funded by capacity replacement fees.

(Ord. No. 317, Art. V, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-215. Procedures for determining daily water and wastewater use.

A connector's average daily water use and wastewater discharge quantities for computing the water and wastewater capacity replacement fees (subsection 20.214(a)(1) and (2)) shall be determined as follows:

- (a) Single-family dwellings (regardless of number of bedrooms) = one hundred fifty (150) gallons per day.

Multifamily residential = one hundred twenty (120) gallons per day per dwelling unit.

Sit down restaurants = twenty (20) gallons per seat per day.

- (b) Uses not listed in subsection 20-215(a) that discharge domestic wastewater (no discharge of industrial wastewater) or are not connected to the city wastewater system—Estimated average daily water use and wastewater discharge quantities will be used to determine tentative water and wastewater capacity replacement fees. The city will establish these estimated water use and wastewater discharge quantities utilizing one or more of the following:

- (1) Study and analyses of water used by comparable or similar users in the city.
- (2) Water use data published by such organizations as the U.S. Environmental Protection Agency (EPA), the New Hampshire Department of Environmental Services, the American Water Works Association and the Water Environment Federation.
- (3) Water use data furnished by the connector.
- (4) Engineering evaluation of the use.
- (5) Negotiation with the connector.

Following assessment and payment, the tentative water and wastewater capacity replacement fees shall be held in a separate interest-bearing escrow account until such time the final capacity fees are determined. The city shall monitor the connector's actual water use for a minimum

of three (3) full six-month billing periods. Providing the city is satisfied that this data is truly representative of the connectors use, the final water and wastewater capacity replacement fees will then be computed and assessed using this monitored data in accordance with section 20-214. Should the tentative capacity replacement fee held in escrow exceed the final capacity replacement fee, the overpayment will be returned with accumulated interest to the connector. Should the final capacity replacement fee be greater than the tentative capacity replacement fee held in escrow (payment plus accumulated interest), then the connector shall be assessed and pay the additional amount due.

- (c) Industrial uses discharging wastewater into the city wastewater system—The average daily wastewater discharge limits established in the connector's industrial wastewater discharge permit (IDP) shall be used to compute the wastewater system capacity replacement fee and surcharge (if any). The average daily water use quantity for computing the base water impact fee shall be equal to the IDP wastewater discharge limit provided city water is the connector's sole water source and all water purchased from the city is discharged as wastewater (no water used or loss in process). Should the connector plan to utilize alternate sources for part or all its water needs or should city water be used or lost in processes, then a tentative base water impact fee shall be assessed in accordance with the procedures set forth in section 20-214(b)

(Ord. No. 317, Art. VI, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-216. Procedures for determining wastewater capacity replacement fee surcharges

Uses who hold Industrial Discharge Permits (IDP's) that authorize the discharge of high organic strength wastewater (BOD > 330 mg/L and/or TSS > 370 mg/L) shall be assessed wastewater capacity replacement fee surcharges computed in

accordance with subsection 20-214(b). The excess quantities of BOD and TSS (pounds per day) for use in these computations shall be determined as follows:

$$\text{Excess BOD (lbs/day)} = \text{IDP BOD Discharge Limit (lbs/day)} - (8.34\text{lbs/day}) \times (\text{IDP Flow}) \times (330 \text{ mg/L})$$

$$\text{Excess TSS(lbs/day)} = \text{IDP TSS Discharge Limit (lbs/day)} - (8.34\text{lbs/day}) \times (\text{IDP Flow}) \times (370 \text{ mg/L})$$

Note: IDP Flow units = million gallons per day (MGD)

IDP BOD Discharge Limit = 30-day average daily discharge of BOD allowed by connector's industrial discharge permit.

IDP TSS Discharge Limit = 30-day average daily discharge of TSS allowed by connector's industrial discharge permit.
(Ord. No. 317, Art. VII, 4-11-90; Ord. No. 398, 7-14-99)

Sec. 20-217. Fee refunds for reductions in industrial water use or wastewater discharges.

The purpose of this section is to establish criteria and procedures for the refund (city buy back) of capacity replacement fees and surcharges previously paid by major industrial water or wastewater users who elect to reduce their permitted limits of water use and wastewater discharge.

- (a) *Eligibility.* An industrial user shall meet the following criteria to be eligible for a refund:
 - (1) Must possess an industrial discharge permit (IDP).
 - (2) Must have paid a water or a wastewater capacity replacement fee or a water or wastewater impact fee (if paid prior to the date of adoption of this section).
 - (3) Must have applied for and received an amended IDP for the reduced water use or wastewater discharge limits.
- (b) *Procedures and conditions.*
 - (1) Refund requests shall in writing to the city manager.
 - (2) Refund requests will be accepted in chronological order, i.e. earliest request receives priority for refund.

- (3) Refunds shall be possible only when another industrial user with comparable water use and wastewater discharge limits is authorized to connect to the water or wastewater systems and pays the appropriate capacity fees. Partial refunds, however, are possible in cases where the new industry's use and discharge limits are less than the reductions made by the industry requesting the refund.
 - (4) Refunds will be based on the original fee rates at the time of payment and the actual units of water use or wastewater discharge capacity being repurchased by the city. No interest shall be paid on the amount being refunded.
 - (5) In all cases, capacity replacement fees and refunds shall be made through the city's water and wastewater enterprise fund and not directly between industrial users.
- (Ord. No. 398, 7-14-99)

Sec. 20-218. Administration, permit applications, payment of fees and enforcement.

(a) *Permit applications.*

- (1) Persons desiring to connect facilities to either the water or wastewater system shall make application to the city for a connection permit on forms furnished by the city. The proposed connector (applicant) shall truthfully provide all requested information including any unique characteristics or constituents of the wastewater.
- (2) Persons desiring to change the use of facilities already connected and served by either the water or wastewater system shall make application to the city for a revised connection permit on forms furnished by the city. The applicant shall truthfully provide all requested information including any unique characteristics or constituents of the wastewater.
- (3) Persons intending to discharge non-domestic wastewater shall make application to the city for an industrial discharge permit (IDP) in accordance with Article II on

forms provided by the city in addition to submitting an application for a new connection or revised connection permit.

- (4) Persons possessing IDP's and wishing to modify its discharge limits shall make application to the city to modify its IDP in accordance with Article II.

(b) *Payment of fees.*

- (1) *Connection or inspection fees.* Connection or inspection fees shall be paid prior to using city water or discharging to the city's wastewater system. The city shall deny use of these systems until said connection or inspection fees are paid.
- (2) *Tentative and final capacity replacement, capacity replacement surcharge or system improvement fees.* Persons assessed tentative or final capacity replacement or system improvement fees of ten thousand dollars (\$10,000.00) or less shall pay said fees prior to using city water or discharging to the city's wastewater system. The city shall deny use of the water or wastewater systems until such payment is made. Persons assessed tentative or final capacity replacement or system improvement fees exceeding ten thousand dollars (\$10,000.00), however, may request a payment schedule. Notwithstanding, should the city manager find that lump sum payment of these fees, regardless of amount, would constitute an unreasonable financial hardship on the person, then the city manager may negotiate and approve a payment schedule, which may include deferral of the payment of any fees for up to three (3) years. The terms and conditions for payment of these fees and the procedures to protect the city from payment default shall be established by written agreement between the person (connector) and the city. The city may charge interest to the person for agreeing to a payment schedule.

(Ord. No. 398, 7-14-99; Ord. of 8-14-02)